ENGLISH FOR PATENT PRACTICE

Patent Law English

Describe the invention. Define the legal question.



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Eight lessons. Eleven extended conversations.

INSIDE THE BOOK

192 vocabulary entries / 128 reusable phrases
220 extended-dialogue turns / 11 transfer exchanges
Word banks and explained answer keys

Upper-intermediate to advanced (B2-C1). For patent lawyers, patent agents, intellectual-property specialists, and technical professionals working with patent counsel.

2026 edition

Eight scenarios. Eight skills.

Eight matters move from an invention disclosure to a licensing discussion, separating technical facts from legal conclusions that require qualified review.

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Small wording changes can change the question.

Patent teams move between engineering detail, legal analysis, and commercial priorities. Effective English makes a component relationship, an unresolved claim issue, or a territorial limitation clear without overstating protection.

Ask how it works

A benefit such as faster cooling does not identify the structure or steps that produce it. Ask about the mechanism and alternatives.

"Which feature produces that result, and what changes if we remove it?"

Identify the document

An invention disclosure, application, publication, and granted patent have different functions. Identify the actual document and status.

"This is the published application, not a granted claim set."

Separate the analyses

Patentability, ownership, infringement, and freedom to operate are different questions. An encouraging result in one does not settle the others.

"That search addressed patentability, not clearance for commercial launch."

Keep scope visible

Territory, claim wording, product configuration, dates, and legal status can determine the relevance of an assessment.

"The review concerns this configuration in the named market."

PROFESSIONAL BOUNDARIES

All people, organizations, cases, figures, and documents in the exercises are fictional. Language practice, not patent or legal advice. Examples simplify documents and do not establish inventorship, patentability, validity, infringement, priority, filing deadlines, licensing rights, or freedom to operate. Real matters require qualified patent professionals, current law and office practice, and the actual documents. Protect confidential inventions and observe applicable filing, disclosure, security, and export requirements.

The improvement is a channel, not simply faster cooling

A Read the situation

Elicit the mechanism, alternatives, and individual contributions behind an invention disclosure.

Engineer Amira describes a prototype battery enclosure with a curved coolant channel. Technician Leo built it from drawings and suggested a detachable connector. One internal test reports a shorter cooling time, but the test conditions have not been compared. Patent professional Daniel is gathering facts, not deciding inventorship or patentability.

PEOPLE / Amira: Engineer | Daniel: Patent professional

CURIOSITY BEFORE CHARACTERIZATION

Ask about contributions and evidence without assigning legal labels based on seniority, job title, or who presents the invention.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What change is described in the enclosure?

A A curved coolant channel
B A different battery chemistry
C A larger enclosure with no channel change
D A connector that replaces the channel

2. What is known about Leo?

A His contribution has already been legally classified
B He built the prototype and suggested a connector
C He only supplied funding
D He conceived every proposed claim

3. What limits the cooling-time comparison?

A No prototype exists
B The result is a commercial guarantee
C The connector has been patented
D The test conditions have not been compared

Answers and explanations: page 85.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

invention disclosure

Internal account of a proposed invention and its development.

IN USE submit an invention disclosure

technical problem

Practical technical difficulty the proposed invention addresses.

IN USE define the technical problem

technical effect

Technical result attributed to a feature or process.

IN USE substantiate a technical effect

conception

Formation of the inventive idea under the applicable legal test.

IN USE investigate contribution to conception

reduction to practice

Implementation or legally relevant realization of an invention.

IN USE document reduction to practice

inventorship

Legal identification of the inventor or inventors.

IN USE assess inventorship

contribution record

Account of who contributed what and when.

IN USE preserve the contribution record

prototype

Preliminary implementation used to explore or test a design.

IN USE evaluate the prototype

embodiment

Particular implementation described for an invention.

IN USE describe an embodiment

alternative configuration

Different arrangement of components or steps.

IN USE disclose an alternative configuration

coolant channel

Passage through which cooling fluid moves.

IN USE trace the coolant channel

detachable connector

Connection component designed to be separated.

IN USE specify a detachable connector

Precision check

Describe each contribution before assessing its legal significance. Building a prototype and conceiving a claimed feature are not interchangeable descriptions.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

causal mechanism

Process explaining how a feature produces a result.

IN USE explain the causal mechanism

comparative test

Test comparing implementations under stated conditions.

IN USE conduct a comparative test

baseline configuration

Reference arrangement used for comparison.

IN USE identify the baseline configuration

laboratory notebook

Contemporaneous record of experimental work.

IN USE preserve the laboratory notebook

confidential disclosure

Communication within the relevant confidentiality arrangements.

IN USE control confidential disclosure

public disclosure

Making information available outside the relevant confidential setting.

IN USE review public disclosure

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

An inventor interview gathers facts. Seniority does not establish inventorship, and a promising test result does not establish patentability.

Phrases you can actually use

C Notice the language / 1 of 2

ELICIT THE MECHANISM

"What does the curved channel change in the flow path?"

PROBE AN ALTERNATIVE

"Would the same effect occur with a straight channel?"

TRACE A CONTRIBUTION

"Who first proposed that feature, and what records support the account?"

SEPARATE RESULT FROM EXPLANATION

"The test reports a shorter time; it does not yet establish why."

CLARIFY IMPLEMENTATION

"Did Leo follow the drawings or propose a different arrangement?"

PRESERVE UNCERTAINTY

"We have not compared the test conditions yet."

PROTECT DISCLOSURE

"Please use the approved confidential channel for the drawings."

SUMMARIZE EVIDENCE

"We have a prototype, a reported result, and contribution details to verify."

Designed versus built

Designed concerns the arrangement; built concerns implementation. A person may have done either or both.

Because versus after

Because asserts causation; after identifies sequence without establishing the cause.

Could versus did

Could describes a possible alternative; did describes what actually happened.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which question is least leading?

A The manager owns the idea, so is he the inventor?
B Who proposed the connector, and when?
C Leo merely followed instructions, correct?
D Amira must be the only inventor, correct?

2. Which test summary is supported?

A Comparable conditions have been confirmed
B A shorter cooling time was reported in one test
C Faster cooling is guaranteed in all conditions
D The connector caused the improvement

3. What should the interview capture about alternatives?

A How a straight channel would change the mechanism
B Only the preferred marketing benefit
C A guarantee that all alternatives are patentable
D An assumption that undisclosed alternatives are already supported

4. Which status is accurate?

A The presenter is necessarily the sole inventor
B Prototype construction alone settles the issue
C Inventorship remains for qualified assessment
D All contributors are automatically inventors

Answers and explanations: page 85.

The improvement is a channel, not simply faster cooling

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

contribution record / laboratory notebook / public disclosure / invention disclosure / causal mechanism / inventorship / embodiment / baseline configuration / alternative configuration / technical problem

01 **Amira:** Our enclosure cools faster. I would like the application to focus on that benefit rather than the shape of the tubing.

02 **Daniel:** Let us identify the [1] _____ first. What limits cooling in the reference design, and which feature changes that behavior?

03 **Amira:** Fluid bypasses part of the enclosure. The curved channel takes it around that area instead of directly to the outlet.

04 **Daniel:** That describes a [2] _____. We should distinguish that explanation from the measurements supporting it.

05 **Amira:** One internal test showed a shorter cooling time. I have not checked whether both tests used the same starting temperature.

06 **Daniel:** Then we need the [3] _____ and test conditions before describing the result as a controlled improvement.

07 **Amira:** Leo built the enclosure from my drawings, but he suggested making the connector detachable for easier assembly.

08 **Daniel:** Record that in the [4] _____. Construction work and a new design suggestion should not be collapsed into one description.

09 **Amira:** Should I list only senior engineers as inventors? Leo is a technician and did not present the project to management.

10 **Daniel:** Job title does not settle [5] _____. We need the relevant facts and proposed claims before reaching that conclusion.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 10.

11 **Amira:** I also sketched a straight channel with a baffle, although we have not built that version yet.

12 **Daniel:** Describe the [6] _____ and explain whether you expect it to address the same flow problem.

13 **Amira:** The curved version is the one we built. The straight version remains a drawing, with no performance measurements.

14 **Daniel:** Identify each [7] _____ separately and avoid implying that the untested version produced the reported data.

15 **Amira:** The notebook contains dated sketches and build notes. I can collect those without rewriting the original entries.

16 **Daniel:** Preserve the [8] _____ and provide copies through the approved confidential process.

17 **Amira:** Marketing wants to show the prototype at a public event next month. I have not approved that request.

18 **Daniel:** Flag the proposed [9] _____ for prompt legal review before anyone assumes the timing is harmless.

19 **Amira:** I will supply the drawings, contribution details, test conditions, and event request as separate items for your review.

20 **Daniel:** That gives the [10] _____ a factual foundation without promising protection or treating an initial result as a verified product claim.

ANSWERS / EXPLANATIONS: PAGE 86

1. technical problem | 2. causal mechanism | 3. baseline configuration | 4. contribution record | 5. inventorship | 6. alternative configuration | 7. embodiment | 8. laboratory notebook | 9. public disclosure | 10. invention disclosure

A drawing was mistaken for a test result

F Say it

A second enclosure appears only in a dated sketch. It has not been built or tested. The team wants to include it in the confidential disclosure.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

configuration / untested / hypothesis / sketch

Engineer: "This is an alternative [1] _____."

Reviewer: "Its performance remains [2] _____."

Engineer: "I will preserve the dated [3] _____."

Reviewer: "Describe the expected effect as a [4] _____."

ANSWERS / EXPLANATIONS: PAGE 86

1. configuration | 2. untested | 3. sketch | 4. hypothesis

Rehearse with a fixed script

1. Read the corrected interview and stress designed, built, suggested, and tested where their meanings differ.

2. Switch roles and deliver the final document list using only the supplied development facts.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

One reference matches two features, not the entire claim

A Read the situation

Explain a search result using feature mapping, dates, and the limits of the search scope.

Analyst Noor finds Reference R describing a housing and curved channel. The draft claim also requires a detachable connector, which Noor has not located in R. Reference S mentions a detachable connector in a different device. Dates and legal relevance need review. Counsel Ethan must distinguish the references and search limitations.

PEOPLE / Noor: Search analyst | Ethan: Patent counsel

A USEFUL FINDING CAN STILL BE INCOMPLETE

Describe what a reference discloses before calling it decisive. Make uncertainty usable instead of hiding it behind a yes-or-no label.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which feature has not been located in R?

A The housing
B The curved channel
C Every feature in the draft
D The detachable connector

2. Where is a connector mentioned?

A S, in a different device
B Only in the client grant
C In an identified passage of R
D In no document at all

3. What remains to be reviewed?

A Whether the draft requires a connector
B Whether Noor performed a search
C Dates and legal relevance
D Whether R has been found

Answers and explanations: page 87.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

prior art

Earlier material relevant under the applicable patent law.

IN USE assess prior art

novelty

Requirement that claimed subject matter be new under the applicable test.

IN USE analyze novelty

inventive step

Requirement addressing whether an invention exceeds the applicable obviousness threshold.

IN USE assess inventive step

nonobviousness

US patentability requirement concerning obviousness under applicable law.

IN USE evaluate nonobviousness

reference document

Identified source considered in a patent analysis.

IN USE retrieve the reference document

feature mapping

Comparison linking claimed features to disclosed material.

IN USE prepare feature mapping

disclosure passage

Specific text or figure describing relevant subject matter.

IN USE cite the disclosure passage

publication date

Date a document was published.

IN USE verify the publication date

priority date

Claimed earlier date whose legal effect requires assessment.

IN USE check the priority date

search scope

Boundaries of databases, terms, subject matter, and dates searched.

IN USE define the search scope

classification code

Patent-search category identifying technical subject matter.

IN USE search by classification code

keyword variant

Alternative term used to locate related material.

IN USE include keyword variants

Precision check

Not located is a search finding, not proof of absence. A reference describing some features does not automatically disclose the whole combination.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

citation trail

Chain of references connected through citations.

IN USE follow the citation trail

patent family

Related filings linked through specified priority relationships.

IN USE review the patent family

non-patent literature

Relevant material outside patent documents.

IN USE search non-patent literature

single-reference analysis

Examination of what one identified reference discloses.

IN USE distinguish single-reference analysis

combination rationale

Reasoning for combining teachings under the applicable legal test.

IN USE assess the combination rationale

search limitation

Constraint affecting search completeness or interpretation.

IN USE disclose the search limitation

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Novelty and obviousness or inventive-step analyses have jurisdiction-specific tests. Do not combine references casually and call the result a single-reference disclosure.

Phrases you can actually use

C Notice the language / 1 of 2

LOCATE SUPPORT

"Which passage discloses the connector?"

QUALIFY THE FINDING

"I have not located that feature in this reference."

SEPARATE REFERENCES

"R describes the channel; S discusses a connector in another device."

CHECK DATES

"Publication and priority information still need verification."

DEFINE SEARCH LIMITS

"The search covered these databases and keyword variants."

AVOID A GUARANTEE

"No close result in this search is not a guarantee of patentability."

FRAME THE LEGAL ISSUE

"Any proposed combination needs the applicable legal analysis."

REPORT NEXT STEPS

"I will add pinpoint citations and document the remaining search gaps."

Not found versus absent

Not found reports a search result; absent makes a stronger statement about the material.

Discloses versus suggests

Discloses attributes material to a source; suggests often introduces an inference needing explanation.

Relevant versus decisive

Relevant warrants review; decisive claims that the material resolves the issue.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which report sentence is supported?

A S proves the connector appears in R
B No connector exists anywhere in prior art
C R describes two features; its connector remains unlocated
D R conclusively discloses the entire draft

2. What makes feature mapping traceable?

A Removing uncertainty from the table
B Pinpoint passages or figures for each feature
C Titles without passages
D One group label replacing both references

3. What must an R-plus-S argument address?

A Only whether both documents are downloadable
B Whether the client prefers the title
C Automatic combination of all similar documents
D Applicable combination analysis and its factual basis

4. Which statement fairly describes an unsuccessful search?

A Commercial launch has been cleared
B No close result was located within the stated scope
C No relevant prior art exists
D Every claim is patentable worldwide

Answers and explanations: page 87.

One reference matches two features, not the entire claim

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

reference document / publication date / novelty / nonobviousness / combination rationale / search scope / disclosure passage / patent family / search limitation / feature mapping

01 **Noor:** Reference R looks close. It shows a housing and curved channel, which are both in our current draft claim.

02 **Ethan:** Start with [1] _____ so we can see exactly which passages support each comparison.

03 **Noor:** The housing is in paragraph twelve and the channel in figure three, but I have not located the detachable connector.

04 **Ethan:** Preserve that [2] _____. Not located in your review is more precise than declaring that the reference cannot disclose it.

05 **Noor:** Reference S mentions a detachable connector, although its device is different and the function is not described in the same way.

06 **Ethan:** Keep the [3] _____ identities separate. We should not move a feature from S into the column describing R.

07 **Noor:** Could the two documents still raise a problem if neither appears to describe the entire draft combination alone?

08 **Ethan:** That calls for the applicable [4] _____ or inventive-step analysis, including the facts and reasoning supporting any proposed combination.

09 **Noor:** I will describe the potential combination without saying that it automatically defeats the claim under every legal system.

10 **Ethan:** Identify a possible [5] _____ for counsel to assess rather than treating shared subject matter as sufficient by itself.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 19.

11 **Noor:** The database gives several dates. I copied the earliest number without identifying what that date represents.

12 **Ethan:** Distinguish the [6] _____ from claimed priority information, and verify the relevant legal timing separately.

13 **Noor:** Some results are related filings with different claims. I grouped them together to keep the report shorter.

14 **Ethan:** A [7] _____ can organize results, but the actual document and claim version must remain identifiable.

15 **Noor:** We covered two databases, three classification groups, and synonyms for coolant routing, but not every technical publication.

16 **Ethan:** State that [8] _____, including limits on non-patent literature and any language coverage.

17 **Noor:** The team wants the conclusion changed to no blocking prior art found, which sounds broader than the report supports.

18 **Ethan:** Keep the [9] _____ discussion tied to the examined features; do not imply freedom to operate or a guarantee of grant.

19 **Noor:** I will revise the table, separate documents and dates, and flag the connector question for further review.

20 **Ethan:** Add the exact [10] _____ for every positive mapping. That gives us a report we can analyze, challenge, and update.

ANSWERS / EXPLANATIONS: PAGE 88

1. feature mapping | 2. search limitation | 3. reference document | 4. nonobviousness | 5. combination rationale | 6. publication date | 7. patent family | 8. search scope | 9. novelty | 10. disclosure passage

The abstract hides a useful figure

F Say it

A reviewer finds a potentially relevant figure after the abstract search. The feature and legal date still need verification against the full document.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

disclosure / figure / verified / scope

Reviewer: "The abstract search did not identify this [1] _____."

Counsel: "Check the complete [2] _____ before mapping the feature."

Reviewer: "The relevant date remains to be [3] _____."

Counsel: "Update the report and preserve its stated [4] _____."

ANSWERS / EXPLANATIONS: PAGE 88

1. figure | 2. disclosure | 3. verified | 4. scope

Rehearse with a fixed script

1. Read the corrected dialogue, stressing not located, separate, and within the stated scope.

2. Switch roles and distinguish R alone from a proposed R-plus-S argument using the printed facts.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

The dependent claim adds a feature

A Read the situation

Translate claim relationships into plain English without changing their scope.

For this simplified drafting discussion, claim 1 requires a housing and channel. Claim 2 depends on claim 1 and adds a detachable connector. Engineer Priya thinks claim 2 covers a connector by itself. Patent professional Marcus explains the dependency and checks the draft term the valve, which has no clear earlier introduction. These are unfiled examples, not legal claim-construction conclusions.

PEOPLE / Priya: Engineer | Marcus: Patent professional

EXPLAIN THE RELATIONSHIP BEFORE THE TERMINOLOGY

Technical colleagues may read claim lists as separate product options. Explain what carries forward before introducing drafting labels.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What does claim 2 add in this example?

A A valve replacing every earlier feature

B A detachable connector to the inherited requirements

C A connector instead of the housing and channel

D A new cooling-time guarantee

2. What is unclear about the valve wording?

A Whether claim 2 has a connector

B Whether claim 1 mentions a housing

C Whether the draft has been published

D Which earlier element the term identifies

3. What is the document status?

A An issued infringement judgment

B A signed license

C An unfiled drafting example

D A granted patent with settled scope

Answers and explanations: page 89.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

claim

Statement defining the subject matter for which protection is sought or granted.

IN USE review the claim

independent claim

Claim that does not depend on another claim.

IN USE draft an independent claim

dependent claim

Claim incorporating a referenced claim and adding a further limitation.

IN USE review a dependent claim

claim dependency

Relationship linking a dependent claim to another claim.

IN USE check claim dependency

claim limitation

Requirement expressed in a claim.

IN USE identify each claim limitation

claim scope

Extent of subject matter covered under the applicable interpretation.

IN USE assess claim scope

antecedent basis

Earlier identification supporting a later reference to an element.

IN USE check antecedent basis

preamble

Introductory portion of a claim.

IN USE review the preamble

transitional phrase

Wording connecting claim introduction and body with legal significance.

IN USE select the transitional phrase

claim body

Portion stating substantive elements or steps.

IN USE analyze the claim body

apparatus claim

Claim directed to a device or system.

IN USE distinguish an apparatus claim

method claim

Claim directed to steps of a process.

IN USE draft a method claim

Precision check

In the supplied example, claim 2 contains the housing, channel, and connector requirements. It is not a claim to the connector alone.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

functional language

Wording describing what an element does.

IN USE evaluate functional language

structural limitation

Requirement describing physical structure or arrangement.

IN USE identify a structural limitation

further limitation

Additional restriction in a dependent claim.

IN USE introduce a further limitation

claim construction

Legal interpretation of claim terms and scope.

IN USE address claim construction

claim tree

Diagram or list showing claim dependencies.

IN USE check the claim tree

fallback position

Narrower supported position available for appropriate consideration.

IN USE preserve a fallback position

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

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action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

A plain-English explanation helps the discussion but does not replace the actual claim language or the applicable legal construction.

Phrases you can actually use

C Notice the language / 1 of 2

EXPLAIN INHERITANCE

"Claim 2 carries forward the requirements of claim 1."

IDENTIFY THE ADDITION

"The connector is an added limitation, not a replacement."

CHECK THE REFERENT

"Which valve does the later phrase refer to?"

LOCATE THE FIRST MENTION

"We need to check where that element is introduced."

SEPARATE CLAIM TYPES

"This version describes an apparatus rather than a sequence of steps."

LIMIT THE PARAPHRASE

"That is a working explanation, not a legal construction."

DISCUSS NARROWING

"Adding a requirement narrows this simplified combination."

KEEP ALTERNATIVES DISTINCT

"A connector-only concept would need separate drafting and support review."

In addition to versus instead of

In addition to adds a requirement; instead of substitutes one and changes the relationship.

A versus the

A can introduce an element; the ordinarily refers to an identified element. Exact drafting consequences require review.

Comprising versus consisting of

These can have materially different legal effects. Do not exchange them as ordinary stylistic synonyms.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

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"Let me restate the distinction more clearly."

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"We agree on the action, the owner, and the point for review."

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Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which paraphrase matches the supplied claim 2?

A A housing and channel with the added connector
B A connector with no housing requirement
C Either a housing or a connector
D A channel only if no connector is present

2. Which question addresses antecedent basis?

A Where is the valve first identified?
B Is the cover illustration attractive?
C Which client prefers the title?
D Has the product achieved commercial sales?

3. What should a plain-language paraphrase avoid?

A Identifying that the document is a draft
B Silently dropping inherited limitations
C Naming the added feature
D Explaining the dependency

4. Which change requires substantive review rather than casual editing?

A Fixing an extra space in a cover label
B Replacing comprising with consisting of
C Correcting a page-number typo
D Aligning a heading without changing text

Answers and explanations: page 89.

The dependent claim adds a feature

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

fallback position / transitional phrase / claim tree / claim limitation / independent claim / structural limitation / claim dependency / claim construction / dependent claim / antecedent basis

01 **Priya:** Claim 2 says the enclosure of claim 1 has a detachable connector. Does that mean we now have protection for any connector?

02 **Marcus:** No. In this draft, the [1] _____ includes the requirements it inherits from claim 1.

03 **Priya:** So the housing and channel remain part of the combination, even though their wording is not repeated on that line?

04 **Marcus:** Exactly. The [2] _____ carries them forward, and the connector adds another requirement to that combination.

05 **Priya:** I had treated the numbered claims like a menu where the reader chooses one component and ignores the others.

06 **Marcus:** Think in terms of each [3] _____. We must identify all the requirements in the particular claim under discussion.

07 **Priya:** Would a claim covering only the connector need to be drafted differently and checked against the original disclosure?

08 **Marcus:** Yes. A separate [4] _____ would raise its own drafting and support questions; the current dependency does not accomplish that.

09 **Priya:** I also noticed the phrase the valve near the end, but I could not find a valve introduced earlier.

10 **Marcus:** That is an [5] _____ issue to review. We need to establish which element the phrase is intended to identify.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 28.

11 **Priya:** The engineer meant a flow-control valve, not the detachable connector. I can point to the relevant drawing.

12 **Marcus:** Good. We should check the [6] _____ and its support rather than guessing that two different component names mean the same thing.

13 **Priya:** Could I simplify comprising to consisting of? The second phrase sounds more natural to me in ordinary English.

14 **Marcus:** Do not change that [7] _____ for style alone. The legal effect needs deliberate review under the applicable law.

15 **Priya:** I will leave the operative wording intact and add a separate plain-English explanation for the engineering meeting.

16 **Marcus:** That helps, provided you label it as a paraphrase rather than a definitive [8] _____ that settles every possible interpretation.

17 **Priya:** I can show claim 1 at the top and claim 2 below it, with the connector marked as an addition.

18 **Marcus:** A [9] _____ will make the relationship visible without dropping the inherited housing and channel requirements.

19 **Priya:** Then our summary is a housing and channel with a detachable connector, not a connector standing alone.

20 **Marcus:** Correct for this example. That narrower combination may be a [10] _____ to assess, but it is not a promise of grant or an infringement conclusion.

ANSWERS / EXPLANATIONS: PAGE 90

1. dependent claim | 2. claim dependency | 3. claim limitation | 4. independent claim | 5. antecedent basis | 6. structural limitation | 7. transitional phrase | 8. claim construction | 9. claim tree | 10. fallback position

A different dependency changes the inherited features

F Say it

Claim 3 depends on claim 2 and adds a pressure sensor. In this simplified example, claim 2 already includes the housing, channel, and connector.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

tree / requirements / limitation / connector

Engineer: "Claim 3 inherits the earlier [1] _____."

Reviewer: "The sensor is an additional [2] _____."

Engineer: "It does not replace the [3] _____."

Reviewer: "Show that relationship in the claim [4] _____."

ANSWERS / EXPLANATIONS: PAGE 90

1. requirements | 2. limitation | 3. connector | 4. tree

Rehearse with a fixed script

1. Read claim 1 and claim 2 aloud using the supplied paraphrases, emphasizing in addition to rather than instead of.

2. Swap roles and explain the valve-reference problem without guessing which component the draft legally covers.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

The new controller was developed after filing

A Read the situation

Distinguish filed disclosure from later engineering developments when discussing an amendment.

The filed application describes a mechanical bypass. A later prototype uses an electronic controller. Engineer Sofia wants to insert the controller into the pending application as a clarification. Patent counsel Ravi has not located support for it in the filed text or drawings. The team must preserve both versions and obtain qualified advice on available filing options.

PEOPLE / Sofia: Engineer | Ravi: Patent counsel

ACCURACY CAN SLOW AN ATTRACTIVE SHORTCUT

A later improvement may be valuable without belonging in the earlier filing. Explain the document boundary without dismissing the engineering work.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which feature appears in the filed disclosure as described?

A The later electronic controller
B A tested wireless interface
C Every future control system
D A mechanical bypass

2. What is Sofia proposing?

A Withdrawing every drawing
B Reporting an existing grant
C Adding the later controller as a clarification
D Deleting the whole application

3. What has Ravi established?

A The amendment is legally permissible
B The later prototype has an earlier filing date
C A new filing has already been approved
D He has not located support in the filed materials

Answers and explanations: page 91.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

specification

Written disclosure forming part of a patent application.

IN USE review the specification

application as filed

Application content in its originally filed form.

IN USE compare the application as filed

written description

Disclosure supporting the claimed subject matter under the applicable requirement.

IN USE assess written description

enablement

Sufficiency of teaching under the applicable legal standard.

IN USE evaluate enablement

new matter

Added subject matter not permitted by the applicable disclosure rules.

IN USE identify potential new matter

amendment

Proposed or entered change to application documents.

IN USE prepare an amendment

support citation

Pinpoint reference to material supporting proposed wording.

IN USE provide a support citation

filed drawing

Drawing contained in the relevant filed application.

IN USE inspect the filed drawing

later-developed feature

Feature developed after the earlier document or filing.

IN USE distinguish a later-developed feature

original disclosure

Content disclosed in the original application.

IN USE locate original disclosure

explicit support

Support stated directly in the relevant material.

IN USE identify explicit support

inherent disclosure

Feature necessarily present under the applicable analysis rather than merely possible.

IN USE assess inherent disclosure

Precision check

Calling a substantive addition a clarification does not supply support. Compare the proposed wording with the actual filed disclosure.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

draft history

Record of successive drafting versions.

IN USE preserve the draft history

marked-up copy

Version visibly identifying proposed changes.

IN USE circulate a marked-up copy

clean copy

Version showing text without visible change markings.

IN USE compare the clean copy

support matrix

Table linking proposed wording to source disclosure.

IN USE maintain a support matrix

priority entitlement

Right to rely on an earlier date under applicable requirements.

IN USE assess priority entitlement

filing strategy

Plan for pursuing protection through appropriate filings.

IN USE review the filing strategy

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Later development, earlier disclosure, and priority entitlement are separate questions. This scenario does not prescribe a filing route or deadline.

Phrases you can actually use

C Notice the language / 1 of 2

LOCATE THE BASIS

"Where does the filed application disclose that controller?"

SEPARATE VERSIONS

"That feature appears in the later prototype, not the cited filed passage."

CHALLENGE A LABEL

"Calling it a clarification does not answer the support question."

REQUEST PRECISION

"Please provide the exact paragraph or drawing reference."

AVOID HINDSIGHT

"We should not read later knowledge back into the earlier document."

PRESERVE THE RECORD

"Keep the filed version separate from the working draft."

ROUTE THE DECISION

"We need advice on the available filing options."

SUMMARIZE THE LIMIT

"The proposed addition remains under review; it is not approved for filing."

As filed versus as amended

As filed identifies original content; as amended identifies content after a change.

Disclosed versus developed

A feature can have been developed without being disclosed in a particular application.

Necessarily versus possibly

Necessarily asserts an unavoidable feature; possibly states only a potential one.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. What would most directly support the proposed wording?

A A verified relevant passage or drawing in the filed disclosure
B A later marketing slide alone
C A new prototype photo with no earlier support
D The engineer calling it obvious

2. Which summary avoids hindsight?

A The new prototype changes the historical filing contents
B The controller is later developed and support is unlocated
C The original filing automatically includes later improvements
D Every possible controller was necessarily disclosed

3. Why keep a marked-up copy?

A To establish patentability by formatting
B To replace the original filed record
C To give the new feature an earlier date
D To make proposed wording changes visible for review

4. Which action is appropriate now?

A Review support and available filing options with counsel
B File the addition because it is called clarification
C Promise the earlier date to every new feature
D Delete the filed version from the record

Answers and explanations: page 91.

The new controller was developed after filing

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

marked-up copy / written description / support citation / application as filed / priority entitlement / new matter / filing strategy / support matrix / later-developed feature / filed drawing

01 **Sofia:** The latest prototype uses an electronic controller. Can we add it to the pending application as a clarification of the bypass?

02 **Ravi:** First compare it with the [1] _____. The version I have describes a mechanical bypass, not this later controller.

03 **Sofia:** The controller performs a related purpose, but we developed its arrangement after the filing and drew a new circuit diagram.

04 **Ravi:** Then identify it as a [2] _____ while we investigate whether the proposed wording has support in the earlier disclosure.

05 **Sofia:** I found a broad sentence saying that flow may be controlled. Would that automatically support any electronic implementation?

06 **Ravi:** Not automatically. We need a proper [3] _____ analysis rather than assuming a general result discloses every way of achieving it.

07 **Sofia:** I can show the exact sentence and the drawing it references, instead of sending only the revised paragraph.

08 **Ravi:** Please provide that [4] _____ so we can evaluate the proposed wording against the actual text and figures.

09 **Sofia:** The new diagram is clearer. I was going to replace the old drawing in our shared folder to avoid confusion.

10 **Ravi:** Preserve the [5] _____. Keep the new diagram separately labeled so that the historical record remains intact.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 37.

11 **Sofia:** I understand. Describing the addition as clarification does not establish that the original application taught this arrangement.

12 **Ravi:** Correct. We must assess potential [6] _____ and the other disclosure requirements before deciding what can be changed.

13 **Sofia:** Would a table listing each proposed phrase beside its original source help you identify the unsupported parts?

14 **Ravi:** Yes. A [7] _____ makes both positive citations and unresolved gaps visible without concealing them in a clean draft.

15 **Sofia:** I will also keep a version showing insertions and deletions, so the technical and legal reviewers see the same changes.

16 **Ravi:** Circulate the [8] _____ alongside the clean version, with neither described as approved for filing.

17 **Sofia:** Management asked whether the electronic version would automatically receive the earlier date because it improves the same product.

18 **Ravi:** We cannot promise [9] _____ on that basis. The relevant subject matter and actual disclosure need assessment.

19 **Sofia:** I will report that the later improvement is valuable, but the support and filing route remain unresolved.

20 **Ravi:** That is accurate. We can discuss [10] _____ once we have the records, without inventing a deadline or assuming that every route is available.

ANSWERS / EXPLANATIONS: PAGE 92

1. application as filed | 2. later-developed feature | 3. written description | 4. support citation | 5. filed drawing | 6. new matter | 7. support matrix | 8. marked-up copy | 9. priority entitlement | 10. filing strategy

The new diagram is not the original diagram

F Say it

A reviewer receives a clean drawing labeled revised. The original filed drawing and a change comparison have not been attached.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

support / filed / comparison / review

Reviewer: "Please attach the original [1] _____ drawing."

Engineer: "I will also supply the change [2] _____."

Reviewer: "The clean version alone does not establish [3] _____."

Engineer: "The proposed revision remains under [4] _____."

ANSWERS / EXPLANATIONS: PAGE 92

1. filed | 2. comparison | 3. support | 4. review

Rehearse with a fixed script

1. Read the corrected exchange, stressing as filed, later developed, and proposed.

2. Switch roles and state the three records to preserve: original documents, support matrix, and marked-up draft.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

The examiner raised two different issues

A Read the situation

Separate the examiner position, proposed response, and procedural status in a client update.

A fictional US non-final office action rejects claim 1 over Reference R and separately questions the clarity of the term substantially aligned. The client wants to say the examiner rejected the product. Counsel Elise proposes reviewing the cited mapping and the unclear term before selecting a response. The actual notice controls all dates; no deadline or guaranteed outcome is supplied.

PEOPLE / Jon: Client engineering lead | Elise: Patent counsel

CHALLENGE REASONING, NOT THE PERSON

A firm response can identify a disputed mapping without portraying the examiner as hostile or promising that disagreement will secure allowance.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What does the notice address?

A A prior-art rejection and a separate clarity issue
B Product safety approval
C A final infringement judgment
D A granted license

2. How should the examiner position be attributed?

A The company admitted every point
B The customer rejected the design
C The examiner states the cited mapping
D The patent office proved the product cannot work

3. Which source controls the response timing?

A A standard date invented for the exercise
B The actual notice and applicable procedure
C A guessed deadline from another case
D The engineering meeting calendar alone

Answers and explanations: page 93.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

office action

Official communication from a patent examiner or office.

IN USE review the office action

non-final action

Procedural action not designated final in the relevant examination process.

IN USE respond to a non-final action

ground of rejection

Stated legal basis for rejecting a claim.

IN USE address each ground of rejection

examiner position

View or reasoning expressed by the examiner.

IN USE summarize the examiner position

response deadline

Time limit governing the required response.

IN USE verify the response deadline

docket entry

Recorded matter and deadline information in a tracking system.

IN USE verify the docket entry

claim amendment

Proposed or entered change to claim wording.

IN USE assess a claim amendment

argument on the record

Reasoning formally submitted in the examination record.

IN USE develop an argument on the record

examiner interview

Discussion with an examiner under the applicable procedure.

IN USE request an examiner interview

interview summary

Record of the substance and outcome of an examiner discussion.

IN USE review the interview summary

allowance

Office determination permitting claims to proceed toward grant subject to requirements.

IN USE distinguish allowance from issuance

final rejection

Procedural designation affecting available response routes.

IN USE review a final rejection

Precision check

The notice addresses claims and wording, not whether customers may buy the product. Examiner arguments, client disagreements, amendments, and allowance are separate statuses.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

appeal

Request for review under the applicable review procedure.

IN USE assess an appeal

prosecution history

Record of proceedings during patent examination.

IN USE review the prosecution history

clarity issue

Concern that wording does not identify its meaning sufficiently.

IN USE resolve a clarity issue

distinguishing feature

Feature relied on to differentiate claimed subject matter from cited material.

IN USE identify a distinguishing feature

response strategy

Plan for addressing the actual issues raised.

IN USE agree on a response strategy

client instruction

Authorized direction from the client on the matter.

IN USE obtain client instructions

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Non-final and final are procedural terms. They do not justify ignoring a notice or assuming that a particular response route, extension, or outcome is available.

Phrases you can actually use

C Notice the language / 1 of 2

ATTRIBUTE THE POSITION

"The examiner maps that passage to the channel limitation."

SEPARATE ISSUES

"The clarity concern needs a response apart from the prior-art argument."

DISAGREE PRECISELY

"We do not read that passage as disclosing the stated relationship."

DISCUSS OPTIONS

"An amendment and an argument have different implications."

AVOID A PROMISE

"We can explain our position without guaranteeing allowance."

CONFIRM AUTHORITY

"Please confirm instructions after reviewing the proposed response."

PRESERVE TIMING

"We will verify the actual deadline and docket entry."

SUMMARIZE STATUS

"The response is proposed; it has not yet been approved or filed."

Rejects versus prohibits

A claim rejection is not a general prohibition on making or selling a product.

Proposed versus entered

Proposed describes a requested change; entered indicates the relevant procedural acceptance into the record.

Final versus finished

Final is a procedural designation, not an ordinary-language guarantee that every possible step has ended.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which client update is accurate?

A The patent has already been granted
B An interview guarantees allowance
C The office action raises prior-art and clarity issues for response
D The product has been banned

2. Which disagreement is professionally precise?

A Every citation is irrelevant because we disagree
B The client wants protection, so the objection must disappear
C The cited passage does not appear to disclose that relationship
D The examiner is hostile and incompetent

3. What must happen before calling the response filed?

A The team must prefer one option
B Counsel must open the notice
C The actual filing must occur and be verified
D The engineer must read a draft

4. Which summary keeps the issues separate?

A Rename the notice to remove the rejection
B Check the mapping and independently address the unclear term
C Ignore clarity once a reference is disputed
D Treat both issues as a product defect

Answers and explanations: page 93.

The examiner raised two different issues

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

distinguishing feature / office action / allowance / client instruction / response deadline / response strategy / examiner interview / ground of rejection / claim amendment / prosecution history

01 **Jon:** The examiner rejected our product. Management wants a quick assurance that your reply will reverse that decision.

02 **Elise:** The [1] _____ addresses the claims and their wording, not whether the product can be sold or will succeed commercially.

03 **Jon:** The notice points to Reference R for claim 1 and also questions the phrase substantially aligned.

04 **Elise:** Those are separate issues. We need to address the [2] _____ and examine the clarity concern rather than assume one answer resolves both.

05 **Jon:** Our engineer thinks the channel in R runs beside the housing instead of through the relationship described in our draft.

06 **Elise:** That may identify a [3] _____. Please show the relevant passages and explain the technical relationship precisely.

07 **Jon:** We can provide a side-by-side diagram, but it should not introduce details that are missing from the filed application.

08 **Elise:** Correct. Any proposed [4] _____ needs support and scope review, while our argument must stay consistent with the actual disclosure.

09 **Jon:** Could we first ask the examiner how that passage is being read instead of guessing the intended mapping?

10 **Elise:** We can assess an [5] _____ under the applicable procedure. A discussion may clarify the issue without guaranteeing agreement.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 46.

11 **Jon:** If the conversation sounds encouraging, may I tell management that the application has been approved?

12 **Elise:** No. An encouraging discussion is not [6] _____. We need an accurate record of what was discussed and the actual subsequent procedural status.

13 **Jon:** I will describe the response as proposed until we have reviewed the alternatives and authorized the next step.

14 **Elise:** That preserves [7] _____. We should explain the consequences of an amendment and an argument before confirming the chosen response.

15 **Jon:** The notice is labeled non-final. Does that mean we can leave it until the next quarterly engineering meeting?

16 **Elise:** No. Verify the [8] _____ and tracking record promptly; the label is not permission to disregard timing.

17 **Jon:** I also want the team to understand that a formal response becomes part of the examination record.

18 **Elise:** Yes. The [9] _____ matters, so we should review technical explanations and legal arguments carefully before submitting them.

19 **Jon:** I will send the mapping and wording comments, then review your proposed alternatives with the authorized client contact.

20 **Elise:** We can then agree on the [10] _____, keeping the notice, instructions, deadline, and eventual filing confirmation separate in the status report.

ANSWERS / EXPLANATIONS: PAGE 94

1. office action | 2. ground of rejection | 3. distinguishing feature | 4. claim amendment | 5. examiner interview | 6. allowance | 7. client instruction | 8. response deadline | 9. prosecution history | 10. response strategy

A draft reply was marked filed

F Say it

The response draft has been approved internally, but no submission or office receipt has been verified.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

filed / record / visible / approved

Coordinator: "The draft is internally [1] _____."

Counsel: "That does not establish that it was [2] _____."

Coordinator: "I will check the actual submission [3] _____."

Counsel: "Keep the deadline [4] _____ until its status is verified."

ANSWERS / EXPLANATIONS: PAGE 94

1. approved | 2. filed | 3. record | 4. visible

Rehearse with a fixed script

1. Read the corrected update and distinguish the examiner position from the team response.

2. Switch roles and deliver the final action sequence without supplying a deadline or promising allowance.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

An international report is not a worldwide grant

A Read the situation

Explain the PCT process and obtain specific instructions without promising universal protection.

Coordinator Hana has received an international search report and written opinion for a PCT application. Manager Luis calls it a world patent. The company is evaluating markets A, B, and C but has authorized none for the national or regional stage. Local requirements, costs, translations, and actual deadlines remain for verification with the responsible professionals.

PEOPLE / Luis: IP portfolio manager | Hana: Filing coordinator

TRANSLATE THE PROCESS INTO DECISION POINTS

A manager needs to know what has happened, what still requires a decision, and who is responsible. Avoid turning a process diagram into a promise of grant.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What documents have arrived?

A An international search report and written opinion
B A grant covering every country
C All national patents for A, B, and C
D A signed license for every market

2. Which markets are authorized for the next stage?

A Only A by implication
B Every PCT country
C None has yet been authorized
D All three automatically

3. Which matters need verification?

A Whether any market is being evaluated
B Requirements, costs, translations, and actual deadlines
C Whether the reports exist
D Whether the manager spoke

Answers and explanations: page 95.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

Patent Cooperation Treaty

Treaty providing an international patent application procedure.

IN USE use the Patent Cooperation Treaty route

international application

Application filed under the relevant international procedure.

IN USE identify the international application

receiving Office

Office receiving a PCT application under the applicable rules.

IN USE identify the receiving Office

International Searching Authority

Authority conducting the relevant PCT international search.

IN USE identify the International Searching Authority

international search report

Report identifying relevant search results in the PCT process.

IN USE review the international search report

written opinion

Written international-stage assessment under the relevant PCT procedure.

IN USE review the written opinion

international phase

International stage of the PCT application process.

IN USE complete international-phase tasks

national phase

Stage before national offices under the applicable PCT framework.

IN USE plan national-phase entry

regional phase

Stage before a regional office under the applicable framework.

IN USE coordinate regional-phase entry

designated Office

Office associated with a designation under the PCT procedure.

IN USE verify designated Office requirements

national requirements

Requirements applicable before the relevant national office.

IN USE verify national requirements

translation specification

Requirements for the language version needed in a filing.

IN USE confirm the translation specification

Precision check

A PCT application is not a world patent. International-stage reports inform further decisions; national or regional offices determine grant under their applicable systems.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

filing instruction

Authorized direction identifying a requested filing action.

IN USE obtain filing instructions

jurisdiction budget

Planned expenditure for pursuing protection in a territory.

IN USE approve the jurisdiction budget

local associate

Local patent professional assisting with a jurisdictional matter.

IN USE instruct the local associate

grant decision

Decision by the competent office on granting patent rights.

IN USE distinguish the grant decision

territorial protection

Rights limited to the relevant territory and legal scope.

IN USE explain territorial protection

portfolio review

Assessment of filings and rights against organizational priorities.

IN USE conduct a portfolio review

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

This exercise provides no filing deadline or route-specific instruction. Actual dates, offices, translations, fees, and procedures require current verification.

Phrases you can actually use

C Notice the language / 1 of 2

CORRECT THE LABEL

"We have a PCT application, not a worldwide grant."

EXPLAIN THE REPORT

"The written opinion is an assessment, not a patent certificate."

IDENTIFY THE DECISION

"Which markets are authorized for the next stage?"

SEPARATE INTEREST FROM INSTRUCTION

"Evaluating a country is not an instruction to file there."

CONFIRM RESPONSIBILITIES

"Who verifies the local requirements and deadline?"

CLARIFY COSTS

"Does this estimate include translation and local professional fees?"

PRESERVE TERRITORIAL SCOPE

"Any resulting rights must be identified by territory and status."

CLOSE THE LOOP

"We need explicit instructions and confirmation of the action taken."

Application versus patent

An application seeks rights; a granted patent has the actual status and scope established by the relevant system.

Designated versus entered

Designation in a treaty procedure and completion of national-stage actions are different concepts.

Estimate versus authorization

An estimate informs a decision; it does not authorize expenditure or filing.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which description corrects world patent accurately?

A One patent automatically enforceable everywhere
B A license to sell in every country
C A PCT application with international-stage reports
D A guaranteed grant in all selected markets

2. What converts market interest into a filing instruction?

A Explicit authorized direction for the specified action
B A market appearing on a discussion slide
C A translation estimate alone
D A search report mentioning a country

3. What should a budget comparison identify?

A An assumption that translations are always included
B What each estimate includes and excludes
C Only the smallest headline number
D A guarantee that grants cost the same everywhere

4. Which status remains unresolved?

A National or regional action for the evaluated markets
B Receipt of the international reports
C The existence of the PCT application
D Management interest in A, B, and C

Answers and explanations: page 95.

An international report is not a worldwide grant

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

national requirements / jurisdiction budget / local associate / translation specification / grant decision / written opinion / international application / filing instruction / portfolio review / territorial protection

01 **Luis:** The search report has arrived. Can I tell the board that our world patent now covers markets A, B, and C?

02 **Hana:** Please call it an [1] _____ under the PCT. We do not have a worldwide grant from receiving those reports.

03 **Luis:** I see an international search report and a separate assessment discussing the claims. Do they perform the same function?

04 **Hana:** The [2] _____ gives an assessment under that procedure; neither document itself grants patents in the markets on our list.

05 **Luis:** The reports will still help us decide whether the commercial opportunity justifies further work in each market.

06 **Hana:** Yes. They inform the [3] _____, alongside business priorities and qualified advice on the actual findings.

07 **Luis:** The market slide lists A, B, and C. I assumed that putting them on the slide authorized your next steps.

08 **Hana:** We need a specific [4] _____. Evaluation and authorization are different statuses, especially where costs and timing are involved.

09 **Luis:** Should the board expect exactly the same requirements in each place once the international stage is complete?

10 **Hana:** No. The relevant [5] _____ or regional requirements must be checked with the responsible professionals using current information.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 55.

11 **Luis:** I have three estimates, but one includes translation and another mentions only the local professional fee.

12 **Hana:** Then the [6] _____ comparison needs clearer assumptions before anyone treats those totals as equivalent.

13 **Luis:** We also need to know who checks the language and format of each version, not just who places the order.

14 **Hana:** Confirm the [7] _____ and review responsibility. A completed translation is not proof that every filing requirement has been met.

15 **Luis:** The local firms can confirm the requirements and actual dates, but the central team must send consistent instructions.

16 **Hana:** Each [8] _____ should receive the authorized scope, documents, and a request for confirmation of the action taken.

17 **Luis:** Once the national-stage actions are completed, should the status report say protection is granted in each place?

18 **Hana:** No. Entry and the [9] _____ are separate. Report each application or right using its actual territory and procedural status.

19 **Luis:** I will revise the board slide to show reports received, market decisions pending, and local requirements under review.

20 **Hana:** Good. That explains [10] _____ without promising grants, inventing deadlines, or treating the application as permission to commercialize everywhere.

ANSWERS / EXPLANATIONS: PAGE 96

1. international application | 2. written opinion | 3. portfolio review | 4. filing instruction | 5. national requirements | 6. jurisdiction budget | 7. translation specification | 8. local associate | 9. grant decision | 10. territorial protection

An estimate was mistaken for an instruction

F Say it

A local associate sends an estimate for market B. The client has not authorized filing or approved the budget.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

instruction / pending / estimate / deadline

Associate: "This document is an [1] _____."

Coordinator: "Client authorization is still [2] _____."

Associate: "Please send an explicit filing [3] _____."

Coordinator: "We will also verify the applicable [4] _____."

ANSWERS / EXPLANATIONS: PAGE 96

1. estimate | 2. pending | 3. instruction | 4. deadline

Rehearse with a fixed script

1. Read the corrected conversation and distinguish application, report, entry, and grant.

2. Switch roles and state what the three estimates need before the board can compare them.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Our own patent does not answer the launch question

A Read the situation

Clarify the product, territory, claim status, and scope of a commercial-clearance review.

Product lead Mei says the company can launch its enclosure because it owns a patent. Counsel Arun explains that a separate freedom-to-operate review concerns third-party rights and the actual product configuration in market A. The engineers propose moving a connector but have not supplied revised drawings. No clearance opinion, infringement finding, or design-around conclusion has been issued.

PEOPLE / Mei: Product lead | Arun: Patent counsel

SEPARATE ENCOURAGEMENT FROM CLEARANCE

Acknowledge the value of the company patent while explaining why it does not settle rights held by others. Avoid letting launch pressure broaden an uncompleted review.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Why does ownership not settle the launch question?

A The company has no patent
B Third-party rights may require separate review
C Ownership always prohibits launch
D Every patent automatically expires at launch

2. What is missing for the proposed connector change?

A Revised drawings
B The name of the proposed market
C Any suggestion of a design change
D The product lead role

3. Which conclusion has been issued?

A A clearance opinion
B An infringement judgment
C A confirmed design-around assessment
D None of the stated legal conclusions

Answers and explanations: page 97.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

freedom to operate

Assessment of relevant rights affecting specified commercial activity in a territory.

IN USE commission a freedom-to-operate review

right to exclude

Patent right to prevent specified acts within its legal scope.

IN USE explain the right to exclude

third-party patent

Patent belonging to another party.

IN USE review third-party patents

commercial clearance

Qualified assessment addressing specified launch or commercial risks.

IN USE define commercial-clearance scope

product configuration

Particular design and components being evaluated.

IN USE freeze the reviewed product configuration

territory of interest

Geographic jurisdiction relevant to the proposed activity.

IN USE identify the territory of interest

legal status

Current procedural or rights status of a patent or application.

IN USE verify legal status

claim chart

Structured comparison of claim requirements with relevant features.

IN USE prepare a claim chart

literal infringement

Infringement analysis based on the claim requirements under applicable interpretation.

IN USE assess literal infringement

doctrine of equivalents

Jurisdiction-specific doctrine addressing certain equivalents beyond literal wording.

IN USE review the doctrine of equivalents

design-around

Product change intended to avoid relevant patent scope, requiring assessment.

IN USE evaluate a design-around

blocking patent

Patent whose relevant scope may constrain proposed commercial activity.

IN USE investigate a potential blocking patent

Precision check

A patent confers exclusion rights within its scope; it is not a universal permission to commercialize. Patentability and freedom to operate ask different questions.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

expired patent

Patent whose term or rights have ended subject to actual legal status.

IN USE verify an expired patent

pending application

Application not yet resolved by the relevant final status.

IN USE monitor a pending application

continuing application

Related further application under an applicable filing system.

IN USE review continuing applications

clearance opinion

Professional opinion within a defined commercial-clearance scope.

IN USE obtain a clearance opinion

residual risk

Risk remaining after the stated review or action.

IN USE communicate residual risk

review trigger

Change or event requiring reassessment.

IN USE define a review trigger

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Moving one feature does not automatically establish a successful design-around. The actual configuration, claims, status, territory, and applicable law need review.

Phrases you can actually use

C Notice the language / 1 of 2

SEPARATE OWNERSHIP FROM PERMISSION

"Our own patent does not settle third-party rights."

DEFINE THE REVIEW

"Which product version and market does the assessment cover?"

REQUEST THE CONFIGURATION

"Please provide the revised drawings before we assess the change."

AVOID A SHORTCUT

"A different appearance does not by itself establish a design-around."

CHECK THE RECORD

"We need the current claims and legal status."

QUALIFY THE CONCLUSION

"Any opinion must state its scope, assumptions, and limits."

CONTROL CHANGES

"A material design change should trigger reassessment."

REPORT ACCURATELY

"Clearance is under review, not already confirmed."

Own versus may use

Own identifies a property relationship; may use can imply permission that requires separate analysis.

Looks different versus falls outside

Visual difference and legal scope are not equivalent tests.

For this version versus for every version

The first limits the assessment; the second expands it beyond the reviewed configuration.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which launch statement is supported?

A Moving the connector eliminates every risk
B The draft review is an infringement judgment
C Third-party-rights review remains incomplete
D Our patent guarantees launch clearance

2. What is necessary to assess the proposed change?

A The actual revised configuration and relevant claims
B Only a statement that it looks different
C A sales target without drawings
D The company patent cover page alone

3. Which scope statement is appropriately bounded?

A Any market named in a later slide
B This product configuration in market A
C Every future product worldwide
D All affiliates regardless of design

4. Which event should be flagged for reassessment?

A Reprinting the same approved cover page
B A material change to the reviewed product
C Correcting a non-substantive slide typo
D Reordering an internal meeting agenda

Answers and explanations: page 97.

Our own patent does not answer the launch question

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

residual risk / territory of interest / review trigger / claim chart / right to exclude / design-around / legal status / clearance opinion / freedom to operate / product configuration

01 **Mei:** We own a patent on the enclosure, so I told the launch team that the product is clear to sell in market A.

02 **Arun:** Ownership gives us a [1] _____ within the patent scope. It does not settle whether third-party rights affect our product.

03 **Mei:** Then the patentability search we commissioned earlier answered a different question from the one the launch team is asking now.

04 **Arun:** Correct. A [2] _____ review needs a defined product, activity, territory, and current legal information.

05 **Mei:** Our first market is A, and the production design has changed since the version used in the earlier review.

06 **Arun:** Please identify the current [3] _____ rather than assuming that an earlier drawing still represents what will be sold.

07 **Mei:** Engineering proposes moving the connector to the opposite side. The team thinks that should avoid the competitor patent.

08 **Arun:** We need the revised drawings before assessing that [4] _____. A different appearance does not by itself answer the claim-scope question.

09 **Mei:** I can obtain a controlled drawing and a list of changed components, with the old version retained for comparison.

10 **Arun:** Good. We can use a [5] _____ to organize the relevant comparison, subject to proper claim interpretation and legal analysis.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 64.

11 **Mei:** The search result includes a granted patent and a related application. Can we treat both as the same right?

12 **Arun:** No. Verify the [6] _____ and actual claims for each relevant record. Related filings can differ in scope and procedural position.

13 **Mei:** We should also make clear that the report is about market A, not every country in the sales forecast.

14 **Arun:** Exactly. The [7] _____ matters, along with the specified activities and the applicable law.

15 **Mei:** Management would like a short answer before the launch meeting, even if several factual questions remain unresolved.

16 **Arun:** We can give a concise status, but not label it a completed [8] _____ while the configuration and relevant rights are still under review.

17 **Mei:** I will replace clear to sell with review ongoing and identify the missing drawing as the engineering team's next action.

18 **Arun:** That is accurate. The eventual assessment should also explain any [9] _____ within its stated scope rather than promising that no claim can ever arise.

19 **Mei:** Once the design is reviewed, I will flag any further connector or channel change before relying on the same conclusion.

20 **Arun:** Make that a [10] _____. A scoped assessment stays useful only when the team knows when its underlying facts have changed.

ANSWERS / EXPLANATIONS: PAGE 98

1. right to exclude | 2. freedom to operate | 3. product configuration | 4. design-around | 5. claim chart | 6. legal status | 7. territory of interest | 8. clearance opinion | 9. residual risk | 10. review trigger

The sales team adds another market

F Say it

A completed assessment concerns one specified product in market A. Sales now proposes market B, which is outside that assessment.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

market / worldwide / checked / scope

Sales: "We want to add another [1] _____."

Counsel: "B is outside the existing review [2] _____."

Sales: "We need the relevant local rights [3] _____."

Counsel: "Do not describe the earlier opinion as [4] _____ clearance."

ANSWERS / EXPLANATIONS: PAGE 98

1. market | 2. scope | 3. checked | 4. worldwide

Rehearse with a fixed script

1. Read the corrected exchange and distinguish patentability, ownership, and freedom to operate.

2. Switch roles and restate the missing information without promising that the connector change avoids any claim.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Exclusive in one field is not exclusive everywhere

A Read the situation

Clarify grant scope, economic terms, and unresolved conditions during a licensing discussion.

Licensor representative Nia and prospective licensee Ben review a draft term sheet. It proposes exclusivity for industrial cooling in territory A, with other fields excluded. A royalty percentage is discussed, but the net-sales definition and treatment of returns are unresolved. Sublicensing requires a separately negotiated provision. No agreement has been executed.

PEOPLE / Ben: Prospective licensee | Nia: Licensor representative

NARROW THE DISAGREEMENT

Negotiations move forward when each side identifies the specific right or economic assumption it needs. Avoid treating a headline percentage as a complete commercial agreement.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What exclusivity is proposed?

A Every use worldwide

B All fields in A and B

C Only an internal evaluation with no commercial rights

D Industrial cooling in territory A

2. Which economic issue remains unresolved?

A Net-sales definition and returns treatment

B Whether any percentage was discussed

C Whether Ben is interested

D Whether the draft names a territory

3. What is the agreement status?

A A court-imposed license

B Unexecuted draft terms

C A completed worldwide assignment

D An executed unrestricted license

Answers and explanations: page 99.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

licensor

Party granting rights under a license.

IN USE identify the licensor

licensee

Party receiving rights under a license.

IN USE identify the licensee

license grant

Provision specifying licensed rights and limits.

IN USE negotiate the license grant

exclusive license

License granting exclusivity as defined by the actual agreement.

IN USE define the exclusive license

nonexclusive license

License without the specified exclusivity.

IN USE distinguish a nonexclusive license

field of use

Defined application area within a license.

IN USE restrict the field of use

licensed territory

Geographic scope of licensed rights.

IN USE define the licensed territory

sublicense

Permission granted onward under rights allowed by the primary license.

IN USE negotiate sublicense rights

royalty base

Amount or measure to which the royalty rate applies.

IN USE define the royalty base

net sales

Contract-defined sales measure after specified adjustments.

IN USE negotiate net sales

upfront payment

Payment due at the initial contractual stage.

IN USE agree an upfront payment

milestone payment

Payment linked to a specified event or achievement.

IN USE define a milestone payment

Precision check

Exclusive must be read with its field, territory, rights, and conditions. A percentage has limited meaning without the agreed royalty base.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

minimum royalty

Contractual minimum payment under the stated terms.

IN USE negotiate a minimum royalty

audit right

Contractual ability to verify relevant records.

IN USE agree audit rights

improvement rights

Contractual treatment of later improvements.

IN USE clarify improvement rights

termination trigger

Event allowing or requiring termination under the agreement.

IN USE define a termination trigger

term sheet

Document recording proposed or preliminary commercial terms.

IN USE revise the term sheet

execution

Formal signing or completion under the applicable agreement process.

IN USE confirm execution

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

A term sheet can have legal consequences depending on its actual wording and law. This fictional draft is not executed, and no binding effect or negotiation protection is determined.

Phrases you can actually use

C Notice the language / 1 of 2

CLARIFY EXCLUSIVITY

"Exclusive for which field and territory?"

DEFINE THE ECONOMICS

"Which deductions are included in the net-sales definition?"

SEPARATE RATE AND BASE

"We have discussed the percentage, not settled the amount it applies to."

CHECK ONWARD RIGHTS

"Sublicensing needs its own agreed provision."

TRADE A SPECIFIC TERM

"We can discuss that minimum alongside the defined commercial commitment."

KEEP VERSIONS ALIGNED

"Please mark the revised grant language in the next draft."

PRESERVE OPEN ITEMS

"The royalty base and returns treatment remain unresolved."

CONFIRM STATUS

"These are proposed terms, not an executed license."

Exclusive versus unrestricted

Exclusivity can be limited to a defined field or territory and does not imply unlimited rights.

Rate versus base

Rate is the percentage or multiplier; base is the measure to which it applies.

Agreed in principle versus executed

Preliminary agreement on a point and formal completion are distinct statuses; actual legal effect requires review.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which description matches the proposed exclusivity?

A All improvements automatically owned by Ben
B Unlimited sublicensing in every field
C Industrial cooling in A, subject to final terms
D Every commercial use in every territory

2. Why is the percentage alone insufficient?

A A draft percentage establishes every payment date
B The royalty base and return treatment are unresolved
C Percentages cannot be used in licenses
D Territory always determines net sales automatically

3. Which request requires separate negotiation here?

A Permission to sublicense
B Confirmation that a draft exists
C Repeating the named field
D Recording that returns remain open

4. Which closing summary is accurate?

A Proposed grant discussed; economics and sublicensing remain open
B All rights granted and payment terms settled
C Exclusivity automatically extends outside the field
D The term sheet has no possible legal relevance

Answers and explanations: page 99.

Exclusive in one field is not exclusive everywhere

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

execution / sublicense / term sheet / field of use / milestone payment / licensed territory / royalty base / improvement rights / audit right / net sales

01 **Ben:** The heading says exclusive license. Our sales team reads that as permission to use the technology in any product we develop.

02 **Nia:** The proposed [1] _____ is industrial cooling. The heading must be read with that limitation and the rest of the grant.

03 **Ben:** We also plan to sell in market B. I assumed the same exclusivity would follow the product wherever it travels.

04 **Nia:** The draft [2] _____ is A. Any request to include B needs explicit negotiation rather than an assumption from the word exclusive.

05 **Ben:** Understood. We have discussed the percentage, but our finance team cannot calculate the expected payment from the current wording.

06 **Nia:** We still need to settle the [3] _____, including which sales and adjustments the definition actually covers.

07 **Ben:** Returns matter for our business. We need the calculation to distinguish invoiced sales from products later returned by customers.

08 **Nia:** That belongs in the [4] _____ definition. We should agree the treatment and timing rather than rely on an undefined accounting shorthand.

09 **Ben:** A regional partner would distribute the product and may want rights to manufacture a version for local customers.

10 **Nia:** Distribution and a [5] _____ are not interchangeable. Any onward manufacturing rights need the appropriate negotiated provision.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 73.

11 **Ben:** Could we discuss a lower initial payment if we accept a payment when the first approved product enters commercial production?

12 **Nia:** We can discuss a [6] _____, but the event, evidence, and payment obligation would need precise agreement.

13 **Ben:** Our finance team also wants to know what records we would need to maintain for royalty verification.

14 **Nia:** The proposed [7] _____ should address the relevant records and conditions, with appropriate confidentiality and practical arrangements.

15 **Ben:** We expect to develop improved connectors. I do not want either side to assume ownership or access without discussing it.

16 **Nia:** Then include [8] _____ as a separate open item, alongside the licensed patents and any other defined subject matter.

17 **Ben:** I will send a marked-up version showing our requests on territory, returns, sublicensing, and later improvements.

18 **Nia:** Please keep the [9] _____ status clear. A discussion of those points does not mean the license has been completed.

19 **Ben:** Our closing summary should say that the commercial proposal is progressing, with several specified provisions still unresolved.

20 **Nia:** Agreed. Do not describe [10] _____ as complete. We need the final terms, proper review, and authorized completion before reporting an executed license.

08

ANSWERS / EXPLANATIONS: PAGE 100

1. field of use | 2. licensed territory | 3. royalty base | 4. net sales | 5. sublicense | 6. milestone payment | 7. audit right | 8. improvement rights | 9. term sheet | 10. execution

The rate is unchanged but the base differs

F Say it

Two draft royalty provisions use the same percentage. Draft A permits specified returns deductions; draft B does not. Neither is approved.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

deductions / rate / base / proposed

Analyst: "The two drafts use the same [1] _____."

Counsel: "Their royalty [2] _____ differs."

Analyst: "We must compare the permitted [3] _____."

Counsel: "Both provisions remain [4] _____."

ANSWERS / EXPLANATIONS: PAGE 100

1. rate | 2. base | 3. deductions | 4. proposed

Rehearse with a fixed script

1. Read the corrected negotiation, stressing field, territory, rate, and base.

2. Switch roles and list the four requested revisions without treating proposed terms as completed rights.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Separating inventorship from the ownership record

E More workplace conversations / 1-10

Explain a document gap without confusing inventor identity, assignment, recordation, and ownership.

IP coordinator Mina and counsel Joel review a fictional US patent file. The inventor list names two people. A database shows a recorded assignment, but the underlying instrument and its scope have not been reviewed. Mina initially treats the database entry as proof that every ownership issue is resolved. No conclusion on title or document validity is supplied.

PEOPLE / Mina: IP coordinator | Joel: Counsel

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

Recordation / entity identification / title assessment / chain of title / assignment / Inventorship

01 **Mina:** The patent lists two inventors, while the assignment database names a company. I thought one of those records must be wrong.

02 **Joel:** They address different questions. Inventor identity and ownership can differ, and the actual documents need to be examined.

03 **Mina:** The company paid for development, but I should not use that fact alone to decide who invented the claimed subject matter.

04 **Joel:** Correct. [1] _____ is not a synonym for funding, employment, or present ownership.

05 **Mina:** The database also shows a recorded transfer. Does that mean the office has determined the underlying document is legally valid?

06 **Joel:** No. [2] _____ does not supply that substantive conclusion merely because an entry appears in the database.

07 **Mina:** We need the instrument itself, including the parties, subject matter, signatures, and any relevant conditions.

08 **Joel:** Yes. Review the actual [3] _____ rather than treating a short database entry as the entire transaction.

09 **Mina:** The file contains one scanned document, but I do not know whether it covers both inventors or every relevant application.

10 **Joel:** Then those are specific open questions. We should not silently extend the document beyond the parties and rights it actually addresses.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 76.

11 **Mina:** I can assemble the related documents in sequence and mark any missing link instead of declaring the file complete.

12 **Joel:** That supports the [4] _____ review, while keeping the distinction between documents located and ownership conclusions reached.

13 **Mina:** One company name also changed after a reorganization. The folder uses both names without explaining the relationship.

14 **Joel:** Preserve the records and obtain the relevant [5] _____ information rather than assuming that similar names identify the same party.

15 **Mina:** The business team wants a short status for diligence. I can say the entry was found but the instrument is still being reviewed.

16 **Joel:** That is accurate and tells them what remains unresolved without implying a defect that has not been established either.

17 **Mina:** We should avoid both extremes: guaranteed clean title and an unsupported assertion that the company owns nothing.

18 **Joel:** Exactly. The [6] _____ must follow the evidence and applicable law.

19 **Mina:** I will supply the inventor record, database entry, underlying instrument, and entity documents as separate labeled items.

20 **Joel:** Then the review can address the actual questions without confusing invention, transfer, recording, and present ownership in one headline.

ANSWERS / EXPLANATIONS: PAGE 101

1. Inventorship | 2. Recordation | 3. assignment | 4. chain of title | 5. entity identification | 6. title assessment

Recorded became legally validated

F Say it in a new situation

A status note says a database entry proves an assignment is valid. The instrument has not been reviewed.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

instrument / recordation / qualified / validity

Coordinator: "The database shows [1] _____."

Counsel: "The underlying [2] _____ still needs review."

Coordinator: "The note overstated legal [3] _____."

Counsel: "Keep the ownership conclusion [4] _____."

ANSWERS / EXPLANATIONS: PAGE 101

1. recordation | 2. instrument | 3. validity | 4. qualified

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.

2. Switch roles. Read it again with the word bank covered.

3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

Verifying a patent-renewal payment request

E More workplace conversations / 1-10

Challenge an official-looking request while keeping genuine maintenance obligations visible.

Accounts officer Alex receives a letter headed urgent patent cancellation notice. It names the correct patent but comes from an unfamiliar private sender and requests payment through a link. Patent administrator Suri has not verified the sender or the real maintenance status. They route the request through known official and professional channels without assuming that the patent has no genuine deadline.

PEOPLE / Alex: Accounts officer | Suri: Patent administrator

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

payment authorization / trusted contact / verification record / maintenance status / payment confirmation / solicitation

01 **Alex:** This letter names our patent and says urgent cancellation notice. Should I pay through the link before we lose the rights?

02 **Suri:** Do not treat the heading or correct patent number as authentication. We need to verify the sender and the actual obligation.

03 **Alex:** The sender is a private organization I do not recognize, but the letter uses formal language and details from the patent record.

04 **Suri:** Those details may be public. An official-looking [1] _____ is not proof that the sender is the patent office or our authorized provider.

05 **Alex:** I will not use the supplied payment link while the request remains unverified. What information should I send you?

06 **Suri:** Preserve the letter and sender details through our approved reporting process, without sharing credentials or making an unverified payment.

07 **Alex:** We should separately check whether a genuine maintenance obligation exists, even if this particular request is questionable.

08 **Suri:** Exactly. Verify the actual [2] _____ through known official channels and the responsible patent professional.

09 **Alex:** The accounts system has a contact from our previous legitimate instruction, rather than the phone number printed in this letter.

10 **Suri:** Use an independently verified [3] _____ to confirm the matter under our normal controls.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 79.

11 **Alex:** I can flag the request as unverified rather than mark it paid or dismiss every possible deadline.

12 **Suri:** Good. The [4] _____ needs to come through the established process after the obligation and payee are checked.

13 **Alex:** The letter's urgency made me assume that asking questions would itself cause a loss of rights.

14 **Suri:** Prompt verification matters, but urgency should not bypass controls or turn an unverified demand into a confirmed obligation.

15 **Alex:** Once you have checked, we should record the source used and any real action the responsible professional instructs.

16 **Suri:** Maintain that [5] _____ so accounts and the patent team rely on the same confirmed information.

17 **Alex:** If a payment is genuinely required, the team will use the approved route and retain the actual receipt.

18 **Suri:** Yes, and the [6] _____ should remain distinct from the request, authorization, and filing or maintenance status.

19 **Alex:** I will route the letter now, keep the real timing question visible, and avoid using the unverified link.

20 **Suri:** That addresses both risks: an improper payment and a genuine obligation being overlooked while the suspicious request is investigated.

ANSWERS / EXPLANATIONS: PAGE 102

1. solicitation | 2. maintenance status | 3. trusted contact | 4. payment authorization | 5. verification record | 6. payment confirmation

Correct details do not authenticate a sender

F Say it in a new situation

An unfamiliar letter includes the correct patent number but has not been verified. The actual maintenance status also needs checking.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

controls / channel / check / unverified

Accounts: "The patent number is correct, but the sender is [1] _____."

Administrator: "Use an independently verified [2] _____."

Accounts: "The real maintenance obligation needs a separate [3] _____."

Administrator: "Do not bypass payment [4] _____ because of urgency."

ANSWERS / EXPLANATIONS: PAGE 102

1. unverified | 2. channel | 3. check | 4. controls

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.

2. Switch roles. Read it again with the word bank covered.

3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

Resolving a material patent-translation query

E More workplace conversations / 1-10

Explain a quantifier discrepancy and preserve version control without silently changing technical scope.

Translator Aiko compares a source draft saying at least two channels with a translation saying exactly two channels. The text is being prepared for professional review; no filing has occurred. Patent professional Rosa needs the discrepancy raised explicitly. Aiko can explain the linguistic difference but cannot independently decide the final claim scope or legal filing strategy.

PEOPLE / Aiko: Patent translator | Rosa: Patent professional

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

quantifier discrepancy / version label / controlled revision / translation query / terminology check / source wording

01 **Aiko:** I found a scope difference in the draft. The source says at least two channels, but the translation says exactly two.

02 **Rosa:** Please identify the exact sentence and version. Those expressions are not stylistic alternatives with the same numerical meaning.

03 **Aiko:** At least two permits two or more in ordinary numerical language, while exactly two restricts the count to two.

04 **Rosa:** That [1] _____ needs an explicit query before we settle the reviewed text.

05 **Aiko:** I can explain the language issue without deciding whether the final patent claim should use the broader or narrower expression.

06 **Rosa:** Correct. Preserve the [2] _____ and do not quietly rewrite either version to match your preferred interpretation.

07 **Aiko:** The engineering drawing shows two channels, but that alone does not tell me which quantifier the drafter intended.

08 **Rosa:** Good distinction. A pictured example and the intended wording need to be checked against the relevant disclosure and drafting instructions.

09 **Aiko:** I will attach the short source passage, translated passage, and explanation of the difference in ordinary English.

10 **Rosa:** That is a useful [3] _____. It lets the technical and patent reviewers answer the actual question.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 82.

11 **Aiko:** The file name currently says final, although this issue and several terminology questions are still open.

12 **Rosa:** Correct the [4] _____ so nobody mistakes a working translation for approved filing text.

13 **Aiko:** Once the reviewers confirm the intended expression, I can apply the authorized wording and check related occurrences.

14 **Rosa:** Use a [5] _____ that preserves what changed, who approved it, and which passages were checked.

15 **Aiko:** We should also check whether the same quantifier appears in the summary or dependent claims, rather than correcting only one line.

16 **Rosa:** Yes, but report the actual review coverage instead of claiming that every possible language issue has been eliminated.

17 **Aiko:** After the check, I will return both a marked version and a clean version with the same date and identifier.

18 **Rosa:** Then the [6] _____ can be reviewed separately from the decision about the numerical wording.

19 **Aiko:** The delivery note will say the identified query was resolved under instruction, not that I independently certified patent scope.

20 **Rosa:** Exactly. Accurate translation supports the legal process while keeping linguistic explanation, technical intent, and legal authority distinct.

ANSWERS / EXPLANATIONS: PAGE 103

1. quantifier discrepancy | 2. source wording | 3. translation query | 4. version label | 5. controlled revision | 6. terminology check

At least became at most

F Say it in a new situation

A source draft says at least three sensors. Its translation says at most three sensors. No instruction authorizes changing the numerical relationship.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

limit / bound / query / traceable

Translator: "At least sets a lower [1] _____."

Reviewer: "At most sets an upper [2] _____."

Translator: "The difference needs an explicit [3] _____."

Reviewer: "Keep both original versions [4] _____."

ANSWERS / EXPLANATIONS: PAGE 103

1. bound | 2. limit | 3. query | 4. traceable

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.

2. Switch roles. Read it again with the word bank covered.

3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

01 Briefing and language checks

Interviewing inventors without leading their answers

A Briefing checks / page 4

1. What change is described in the enclosure?

A. A curved coolant channel
The supplied mechanism concerns a curved coolant channel in the prototype enclosure.

2. What is known about Leo?

B. He built the prototype and suggested a connector
The brief identifies construction and a connector suggestion without deciding inventorship.

3. What limits the cooling-time comparison?

D. The test conditions have not been compared
A single internal result cannot establish a controlled comparison without checking conditions.

D Language checks / page 9

1. Which question is least leading?

B. Who proposed the connector, and when?
The neutral question elicits contribution facts without suggesting the desired legal conclusion.

2. Which test summary is supported?

B. A shorter cooling time was reported in one test
The brief supplies a reported result but no verified causal or controlled comparison.

3. What should the interview capture about alternatives?

A. How a straight channel would change the mechanism
Explaining alternatives identifies technical relationships without inventing evidence or legal conclusions.

4. Which status is accurate?

C. Inventorship remains for qualified assessment
The interview gathers facts without establishing the applicable legal inventorship outcome.

01 Conversation answers

Interviewing inventors without leading their answers

E Dialogue gaps 1-5

Pages 10-11

1. technical problem. Turn 2. The technical problem identifies the difficulty addressed rather than substituting a marketing benefit for the mechanism.

2. causal mechanism. Turn 4. The causal mechanism connects the arrangement to the proposed effect while leaving performance evidence open to review.

3. baseline configuration. Turn 6. The baseline configuration is the reference arrangement needed to interpret the comparison rather than assuming comparable conditions.

4. contribution record. Turn 8. The contribution record preserves who proposed each feature without prematurely deciding the legal inventorship question.

5. inventorship. Turn 10. Inventorship requires the applicable legal assessment of contributions, not a ranking by seniority or presentation role.

E Dialogue gaps 6-10

Pages 10-11

6. alternative configuration. Turn 12. An alternative configuration is another arrangement that should be identified accurately, including whether it was constructed or tested.

7. embodiment. Turn 14. An embodiment is a particular implementation, so the tested version must remain distinct from an untested proposed arrangement.

8. laboratory notebook. Turn 16. The laboratory notebook contains contemporaneous development evidence and should be preserved rather than rewritten to fit a preferred account.

9. public disclosure. Turn 18. Public disclosure can have patent consequences under actual law and facts, so the plan requires prompt qualified review.

10. invention disclosure. Turn 20. The invention disclosure organizes the technical facts and development history without itself establishing patentability or inventorship.

F Transfer answers 1-2

Page 12

1. configuration

Engineer: "This is an alternative configuration."

The sketch depicts another arrangement, not an established test outcome.

2. untested

Reviewer: "Its performance remains untested."

The brief states that no construction or testing has occurred.

F Transfer answers 3-4

Page 12

3. sketch

Engineer: "I will preserve the dated sketch."

The dated drawing is the supplied development record for this version.

4. hypothesis

Reviewer: "Describe the expected effect as a hypothesis."

An expected untested effect is a proposition to investigate, not a measured result.

02 Briefing and language checks

Discussing prior art without overstating the search

A Briefing checks / page 13

1. Which feature has not been located in R?

D. The detachable connector
Noor found the housing and channel but has not located the connector in R.

2. Where is a connector mentioned?

A. S, in a different device
The facts place the connector in S without establishing its presence in R.

3. What remains to be reviewed?

C. Dates and legal relevance
The case expressly leaves dates and legal significance unresolved for review.

D Language checks / page 18

1. Which report sentence is supported?

C. R describes two features; its connector remains unlocated
The findings support a limited account of R, not a universal legal conclusion.

2. What makes feature mapping traceable?

B. Pinpoint passages or figures for each feature
Pinpoint support lets reviewers check each proposed mapping against the actual source.

3. What must an R-plus-S argument address?

D. Applicable combination analysis and its factual basis
A combination argument requires appropriate legal reasoning rather than automatic aggregation.

4. Which statement fairly describes an unsuccessful search?

B. No close result was located within the stated scope
A search result is bounded by coverage and does not establish universal patentability or clearance.

02 Conversation answers

Discussing prior art without overstating the search

E Dialogue gaps 1-5

Pages 19-20

1. feature mapping. Turn 2. Feature mapping links each claimed element to identified source material instead of equating overall similarity with complete disclosure.

2. search limitation. Turn 4. The search limitation states what has not been established and prevents an incomplete finding from becoming proof of absence.

3. reference document. Turn 6. Each reference document must remain separately identified so that a feature from S is not silently attributed to R.

4. nonobviousness. Turn 8. Nonobviousness concerns a distinct patentability analysis under US law, not automatic treatment of multiple documents as one disclosure.

5. combination rationale. Turn 10. A combination rationale supplies reasoning for considering teachings together and must be assessed under the relevant legal test.

F Transfer answers 1-2

Page 21

1. figure

Reviewer: "The abstract search did not identify this figure."

The new finding is a figure, not a completed legal conclusion.

2. disclosure

Counsel: "Check the complete disclosure before mapping the feature."

The mapping needs actual disclosed material rather than an abstract-only impression.

E Dialogue gaps 6-10

Pages 19-20

6. publication date. Turn 12. The publication date identifies publication and must not be confused with other dates whose legal effect may differ.

7. patent family. Turn 14. A patent family groups related filings but does not establish identical claims or legal status for every member.

8. search scope. Turn 16. Search scope identifies actual coverage and makes the limits visible to readers interpreting the findings.

9. novelty. Turn 18. Novelty is a specific patentability question, so the search summary must not become a broad commercial-clearance conclusion.

10. disclosure passage. Turn 20. The disclosure passage allows direct verification of each proposed feature mapping rather than reliance on an unsupported summary.

F Transfer answers 3-4

Page 21

3. verified

Reviewer: "The relevant date remains to be verified."

The brief expressly leaves the relevant legal timing unresolved.

4. scope

Counsel: "Update the report and preserve its stated scope."

The new finding improves the report without creating an unlimited search guarantee.

03 Briefing and language checks

Explaining claim structure to a technical colleague

A Briefing checks / page 22

1. What does claim 2 add in this example?

B. A detachable connector to the inherited requirements
The simplified dependency expressly carries forward claim 1 and adds the connector.

2. What is unclear about the valve wording?

D. Which earlier element the term identifies
The definite phrase has no clear earlier introduction identifying the intended element.

3. What is the document status?

C. An unfiled drafting example
The case explicitly describes unfiled examples rather than granted or adjudicated claims.

D Language checks / page 27

1. Which paraphrase matches the supplied claim 2?

A. A housing and channel with the added connector
The stated dependency retains claim 1 requirements and adds the connector.

2. Which question addresses antecedent basis?

A. Where is the valve first identified?
Antecedent basis concerns the earlier identification of the later referenced element.

3. What should a plain-language paraphrase avoid?

B. Silently dropping inherited limitations
Dropping inherited limitations would change the supplied combination and mislead the technical reader.

4. Which change requires substantive review rather than casual editing?

B. Replacing comprising with consisting of
Transitional phrases can affect legal scope and are not interchangeable stylistic choices.

03 Conversation answers

Explaining claim structure to a technical colleague

E Dialogue gaps 1-5

Pages 28-29

1. dependent claim. Turn 2. A dependent claim retains the referenced requirements and adds a limitation rather than protecting the added element in isolation.

2. claim dependency. Turn 4. Claim dependency identifies the relationship that carries the earlier requirements into the dependent claim.

3. claim limitation. Turn 6. A claim limitation is a requirement of the claimed combination, not a menu item that can be omitted at will.

4. independent claim. Turn 8. An independent claim does not depend on another claim, but its drafting and legal support still require assessment.

5. antecedent basis. Turn 10. Antecedent basis concerns the earlier identification needed to make the later reference to the valve clear.

E Dialogue gaps 6-10

Pages 28-29

6. structural limitation. Turn 12. A structural limitation describes the physical element or arrangement, which must match the intended supported feature.

7. transitional phrase. Turn 14. A transitional phrase can affect legal scope, so these expressions must not be exchanged as stylistic synonyms.

8. claim construction. Turn 16. Claim construction is the legal interpretation of scope, not an informal engineering paraphrase.

9. claim tree. Turn 18. A claim tree displays dependencies and helps readers see which requirements are inherited by later claims.

10. fallback position. Turn 20. A fallback position is a narrower supported position for consideration, not a guarantee of patentability or protection.

F Transfer answers 1-2

Page 30

1. requirements

Engineer: "Claim 3 inherits the earlier requirements."

The stated dependency retains the requirements already included in claim 2.

2. limitation

Reviewer: "The sensor is an additional limitation."

The new sensor adds a requirement to the inherited combination.

F Transfer answers 3-4

Page 30

3. connector

Engineer: "It does not replace the connector."

The connector remains part of claim 2 and is inherited by claim 3.

4. tree

Reviewer: "Show that relationship in the claim tree."

A claim tree represents the dependency relationship described in the example.

04 Briefing and language checks

Checking drafting support before amending

A Briefing checks / page 31

1. Which feature appears in the filed disclosure as described?

D. A mechanical bypass
The brief identifies a mechanical bypass as the feature described at filing.

2. What is Sofia proposing?

C. Adding the later controller as a clarification
She wants to insert the later controller while describing the change as clarification.

3. What has Ravi established?

D. He has not located support in the filed materials
The supplied finding is lack of located support, not a final legal or filing decision.

D Language checks / page 36

1. What would most directly support the proposed wording?

A. A verified relevant passage or drawing in the filed disclosure
Support must be assessed against the relevant original disclosure, not supplied by a label.

2. Which summary avoids hindsight?

B. The controller is later developed and support is unlocated
The supplied facts distinguish later development from the unresolved original-support question.

3. Why keep a marked-up copy?

D. To make proposed wording changes visible for review
Visible changes help reviewers assess additions without altering the historical filed document.

4. Which action is appropriate now?

A. Review support and available filing options with counsel
Qualified review must resolve support and options before the team assumes a permissible filing step.

04 Conversation answers

Checking drafting support before amending

E Dialogue gaps 1-5

Pages 37-38

1. application as filed. Turn 2. The application as filed is the historical disclosure against which the proposed addition must be assessed.

2. later-developed feature. Turn 4. A later-developed feature must remain distinguishable from what was actually disclosed in the earlier filing.

3. written description. Turn 6. Written description asks whether the relevant disclosure supports the claimed subject matter under the applicable legal standard.

4. support citation. Turn 8. A support citation points to the specific original material on which the proposed wording relies.

5. filed drawing. Turn 10. The filed drawing is part of the historical application record and must not be overwritten by a later engineering version.

F Transfer answers 1-2

Page 39

1. filed

Reviewer: "Please attach the original filed drawing."

The historical filed drawing is needed to compare the proposed changes.

2. comparison

Engineer: "I will also supply the change comparison."

A change comparison makes the differences visible for review.

E Dialogue gaps 6-10

Pages 37-38

6. new matter. Turn 12. New matter concerns impermissible added subject matter under applicable rules and cannot be avoided merely by calling an addition clarification.

7. support matrix. Turn 14. A support matrix links each proposed phrase to its claimed original basis and exposes missing or disputed support.

8. marked-up copy. Turn 16. A marked-up copy visibly identifies proposed changes so reviewers can assess their substance against the existing text.

9. priority entitlement. Turn 18. Priority entitlement depends on the applicable requirements and supported subject matter, not merely on improving the same product.

10. filing strategy. Turn 20. Filing strategy evaluates appropriate available routes after considering the actual disclosure, dates, jurisdictions, and legal requirements.

F Transfer answers 3-4

Page 39

3. support

Reviewer: "The clean version alone does not establish support."

A revised drawing does not itself prove support in the original disclosure.

4. review

Engineer: "The proposed revision remains under review."

No approval or completed support assessment is supplied in the scenario.

05 Briefing and language checks

Explaining an office action and agreeing on a response

A Briefing checks / page 40

1. What does the notice address?

A. A prior-art rejection and a separate clarity issue
The case identifies a claim rejection and a separate concern about a term.

2. How should the examiner position be attributed?

C. The examiner states the cited mapping
The position comes from the office action and should not be turned into a different conclusion.

3. Which source controls the response timing?

B. The actual notice and applicable procedure
The brief supplies no date and directs timing to the actual notice and procedure.

D Language checks / page 45

1. Which client update is accurate?

C. The office action raises prior-art and clarity issues for response
The notice concerns examination issues, not product prohibition, grant, or a promised result.

2. Which disagreement is professionally precise?

C. The cited passage does not appear to disclose that relationship
This statement challenges the reasoning with an identifiable issue rather than attacking the examiner.

3. What must happen before calling the response filed?

C. The actual filing must occur and be verified
Draft review and preference do not establish that a response has actually been filed.

4. Which summary keeps the issues separate?

B. Check the mapping and independently address the unclear term
Each stated issue needs appropriate attention rather than being erased by disagreement on another point.

05 Conversation answers

Explaining an office action and agreeing on a response

E Dialogue gaps 1-5

Pages 46-47

1. office action. Turn 2. The office action concerns patent examination issues and should not be misreported as a general rejection or prohibition of the product.

2. ground of rejection. Turn 4. The ground of rejection is the stated basis for rejecting the claim, distinct from a separate wording concern.

3. distinguishing feature. Turn 6. A distinguishing feature identifies the particular claimed difference to analyze, not a generalized assertion that the whole reference is irrelevant.

4. claim amendment. Turn 8. A claim amendment changes operative claim wording and requires support and scope review rather than being treated as an informal explanatory note.

5. examiner interview. Turn 10. An examiner interview can clarify issues under the applicable procedure but does not itself guarantee agreement or allowance.

E Dialogue gaps 6-10

Pages 46-47

6. allowance. Turn 12. Allowance is a formal examination status and must not be inferred from an encouraging informal discussion.

7. client instruction. Turn 14. Client instruction identifies the authorized direction needed for the matter and must not be assumed from informal interest in an option.

8. response deadline. Turn 16. The response deadline comes from the actual notice and procedure and cannot be postponed based on the word non-final.

9. prosecution history. Turn 18. The prosecution history preserves examination proceedings and submissions, so formal arguments require careful, consistent review.

10. response strategy. Turn 20. Response strategy coordinates the distinct issues, supported options, authority, and actual procedure without promising a favorable outcome.

F Transfer answers 1-2

Page 48

1. approved

Coordinator: "The draft is internally approved."

Internal approval is the completed step supplied in the scenario.

2. filed

Counsel: "That does not establish that it was filed."

Approval alone does not prove submission to the patent office.

F Transfer answers 3-4

Page 48

3. record

Coordinator: "I will check the actual submission record."

The actual filing record is needed to verify the event.

4. visible

Counsel: "Keep the deadline visible until its status is verified."

Unverified filing requires continued attention to the real timing obligation.

06 Briefing and language checks

Coordinating international patent filing decisions

A Briefing checks / page 49

1. What documents have arrived?

A. An international search report and written opinion
The case supplies international-stage reports, not national or worldwide grants.

2. Which markets are authorized for the next stage?

C. None has yet been authorized
The brief expressly says no market has been authorized for national or regional action.

3. Which matters need verification?

B. Requirements, costs, translations, and actual deadlines
These implementation and timing matters remain unresolved in the supplied case.

D Language checks / page 54

1. Which description corrects world patent accurately?

C. A PCT application with international-stage reports
The supplied process is an application route, not universal grant or commercial permission.

2. What converts market interest into a filing instruction?

A. Explicit authorized direction for the specified action
A specific authorized instruction is distinct from exploratory discussion and cost information.

3. What should a budget comparison identify?

B. What each estimate includes and excludes
Comparable budgets require clear coverage of local fees, translation, and other stated items.

4. Which status remains unresolved?

A. National or regional action for the evaluated markets
No market authorization or completed next-stage action is supplied in the brief.

06 Conversation answers

Coordinating international patent filing decisions

E Dialogue gaps 1-5

Pages 55-56

1. international application. Turn 2. An international application under the PCT is a filing procedure, not a worldwide granted patent.

2. written opinion. Turn 4. The written opinion provides an international-stage assessment and must not be presented as a certificate granting patent rights.

3. portfolio review. Turn 6. Portfolio review compares the filings and available information with business priorities without treating an assessment as a grant.

4. filing instruction. Turn 8. A filing instruction is an authorized direction for a specified action and cannot be inferred from a list of markets under evaluation.

5. national requirements. Turn 10. National requirements are office-specific and need verification rather than being assumed identical across markets.

F Transfer answers 1-2

Page 57

1. estimate

Associate: "This document is an estimate."

The document describes expected cost rather than an authorized filing action.

2. pending

Coordinator: "Client authorization is still pending."

The brief says no client filing or budget approval has been given.

E Dialogue gaps 6-10

Pages 55-56

6. jurisdiction budget. Turn 12. A jurisdiction budget must identify included and excluded costs so that figures for different territories can be compared meaningfully.

7. translation specification. Turn 14. The translation specification identifies the actual language and filing requirements that the prepared version must satisfy.

8. local associate. Turn 16. The local associate provides the relevant local professional coordination, while the central team must preserve clear instructions and accountability.

9. grant decision. Turn 18. The grant decision belongs to the competent office and remains distinct from completing national or regional entry actions.

10. territorial protection. Turn 20. Territorial protection requires identifying where rights exist and their actual scope and status, rather than implying universal coverage.

F Transfer answers 3-4

Page 57

3. instruction

Associate: "Please send an explicit filing instruction."

The associate needs an authorized direction for the actual requested action.

4. deadline

Coordinator: "We will also verify the applicable deadline."

The scenario supplies no date, so the real deadline requires verification.

07 Briefing and language checks

Explaining freedom to operate and design-around questions

A Briefing checks / page 58

1. Why does ownership not settle the launch question?

B. Third-party rights may require separate review
The brief distinguishes the company patent from possible third-party rights affecting the actual product.

2. What is missing for the proposed connector change?

A. Revised drawings
The engineers propose a change but have not provided the revised configuration.

3. Which conclusion has been issued?

D. None of the stated legal conclusions
The brief expressly says that no such opinion, finding, or conclusion has been issued.

D Language checks / page 63

1. Which launch statement is supported?

C. Third-party-rights review remains incomplete
The case provides no completed clearance or design-around assessment.

2. What is necessary to assess the proposed change?

A. The actual revised configuration and relevant claims
Assessment requires the changed design and relevant legal material rather than appearance or ownership alone.

3. Which scope statement is appropriately bounded?

B. This product configuration in market A
The brief identifies a specific configuration and market, not universal future clearance.

4. Which event should be flagged for reassessment?

B. A material change to the reviewed product
A material product change can affect the basis of the actual review.

07 Conversation answers

Explaining freedom to operate and design-around questions

E Dialogue gaps 1-5

Pages 64-65

1. right to exclude. Turn 2. The right to exclude concerns specified acts within patent scope and does not itself authorize commercialization free of other rights.

2. freedom to operate. Turn 4. Freedom to operate concerns relevant rights affecting specified commercial activity, distinct from whether the company invention may be patentable.

3. product configuration. Turn 6. The product configuration is the actual design being assessed, so an earlier version cannot silently stand in for the changed production design.

4. design-around. Turn 8. A design-around is an intended avoidance change whose legal effectiveness requires assessment rather than being established by intent or visual difference.

5. claim chart. Turn 10. A claim chart compares relevant claim requirements with the product features and helps expose where the actual scope questions arise.

F Transfer answers 1-2

Page 66

1. market

Sales: "We want to add another market."

The proposed change is expansion to a different geographic market.

2. scope

Counsel: "B is outside the existing review scope."

The supplied assessment concerns market A only, not market B.

E Dialogue gaps 6-10

Pages 64-65

6. legal status. Turn 12. Legal status distinguishes granted rights, pending applications, and other relevant conditions rather than equating related documents.

7. territory of interest. Turn 14. The territory of interest bounds the jurisdictional review and cannot be expanded merely because another country appears in a sales forecast.

8. clearance opinion. Turn 16. A clearance opinion is a professional assessment within a defined scope, not a substitute label for an unfinished status update.

9. residual risk. Turn 18. Residual risk identifies what remains after the stated review and should not be hidden behind an absolute assurance.

10. review trigger. Turn 20. A review trigger is a change requiring reassessment because it may alter the factual basis of the previous conclusion.

F Transfer answers 3-4

Page 66

3. checked

Sales: "We need the relevant local rights checked."

The new territory requires the appropriate rights assessment rather than automatic reuse.

4. worldwide

Counsel: "Do not describe the earlier opinion as worldwide clearance."

The prior assessment is expressly limited and cannot support universal coverage.

08 Briefing and language checks

Negotiating a patent-license term sheet

A Briefing checks / page 67

1. What exclusivity is proposed?

D. Industrial cooling in territory A
The draft limits proposed exclusivity to the named field and territory.

2. Which economic issue remains unresolved?

A. Net-sales definition and returns treatment
The royalty base and return treatment are open even though a percentage has been discussed.

3. What is the agreement status?

B. Unexecuted draft terms
The brief states that no agreement has been executed and important terms remain open.

D Language checks / page 72

1. Which description matches the proposed exclusivity?

C. Industrial cooling in A, subject to final terms
The supplied proposal is limited by field and territory and remains unexecuted.

2. Why is the percentage alone insufficient?

B. The royalty base and return treatment are unresolved
The amount payable depends on the agreed base and adjustments, not only the rate.

3. Which request requires separate negotiation here?

A. Permission to sublicense
The brief states that sublicensing requires a separately negotiated provision.

4. Which closing summary is accurate?

A. Proposed grant discussed; economics and sublicensing remain open
This summary preserves the specific unresolved terms without assuming execution or legal effect.

08 Conversation answers

Negotiating a patent-license term sheet

E Dialogue gaps 1-5

Pages 73-74

1. field of use. Turn 2. The field of use defines the permitted application area and prevents exclusive from being mistaken for unrestricted use.

2. licensed territory. Turn 4. The licensed territory defines geographic scope, which does not automatically expand with the licensee sales plans.

3. royalty base. Turn 6. The royalty base is the amount or measure to which the percentage applies, so an agreed rate alone does not determine payment.

4. net sales. Turn 8. Net sales is a contract-defined measure whose deductions and adjustments need explicit agreement rather than assumed standard treatment.

5. sublicense. Turn 10. A sublicense grants onward rights only as permitted by the primary agreement and must not be inferred from distribution arrangements alone.

E Dialogue gaps 6-10

Pages 73-74

6. milestone payment. Turn 12. A milestone payment depends on a specifically defined event, which needs precise terms rather than an informal expectation of progress.

7. audit right. Turn 14. An audit right defines contractual verification access and conditions, which should be agreed rather than assumed from the royalty obligation alone.

8. improvement rights. Turn 16. Improvement rights address contractual treatment of later developments and must not be inferred from the original license heading.

9. term sheet. Turn 18. The term sheet records the proposed terms and open issues; its actual legal effect depends on its wording and applicable law.

10. execution. Turn 20. Execution refers to formal completion or signing under the actual agreement process, which has not occurred in the supplied case.

F Transfer answers 1-2

Page 75

1. rate

Analyst: "The two drafts use the same rate."

The supplied percentage is identical in both draft provisions.

2. base

Counsel: "Their royalty base differs."

The return deduction changes the amount to which the rate applies.

F Transfer answers 3-4

Page 75

3. deductions

Analyst: "We must compare the permitted deductions."

The stated difference concerns whether returns may reduce the calculation.

4. proposed

Counsel: "Both provisions remain proposed."

Neither draft has been approved, so neither is a completed agreed term.

09 Conversation answers

Separating inventorship from the ownership record

E Extended conversation

Pages 76-77

1. Inventorship. Turn 4. Inventorship identifies the relevant inventors under the applicable legal test and is not settled merely by who funded the work.

2. Recordation. Turn 6. Recordation is the recording step and does not itself establish the validity or ownership effect of the underlying assignment instrument.

3. assignment. Turn 8. An assignment is the instrument or transaction transferring the relevant interest, whose actual scope and legal effect require review.

4. chain of title. Turn 12. The chain of title traces relevant ownership transfers and requires examination of the actual links rather than a single isolated entry.

5. entity identification. Turn 14. Entity identification establishes which legal person each document concerns and prevents a name change from being mistaken for an unexplained transfer.

6. title assessment. Turn 18. The title assessment is the qualified evaluation of ownership and its supporting documents, not an automatic result of a database search.

F Transfer exchange

Page 78

1. recordation

Coordinator: "The database shows recordation."

The database establishes the recorded entry, not every substantive legal conclusion.

2. instrument

Counsel: "The underlying instrument still needs review."

The actual transfer document must be examined for its relevant effect.

3. validity

Coordinator: "The note overstated legal validity."

Recording alone does not establish the assignment document's substantive validity.

4. qualified

Counsel: "Keep the ownership conclusion qualified."

The unresolved document review prevents an unqualified ownership assurance.

Background reading: USPTO. MPEP 301: Ownership and assignability.. The conversation is an original fictional teaching case.

10 Conversation answers

Verifying a patent-renewal payment request

E Extended conversation

Pages 79-80

1. solicitation. Turn 4. A solicitation can use public patent details without being an official fee notice, so appearance alone does not establish authority.

2. maintenance status. Turn 8. Maintenance status concerns the real patent record and obligations, which remain a separate question from whether the received letter is authentic.

3. trusted contact. Turn 10. A trusted contact is verified independently of the suspicious request, reducing reliance on contact details supplied by the same unverified sender.

4. payment authorization. Turn 12. Payment authorization must follow the actual approved process and cannot be inferred from urgency or an official-looking design.

5. verification record. Turn 16. The verification record preserves the source, finding, and authorized next action rather than leaving only a vague assurance that someone checked.

6. payment confirmation. Turn 18. Payment confirmation is evidence of the actual completed payment, not the original request or an internal intention to pay.

F Transfer exchange

Page 81

1. unverified

Accounts: "The patent number is correct, but the sender is unverified."

Correct public details do not establish that the sender is authentic.

2. channel

Administrator: "Use an independently verified channel."

Verification should not depend on contact details in the unverified request.

3. check

Accounts: "The real maintenance obligation needs a separate check."

Sender authenticity and actual patent maintenance status are different questions.

4. controls

Administrator: "Do not bypass payment controls because of urgency."

Urgent wording does not replace the established authorization and verification process.

Background reading: USPTO. Non-USPTO solicitations.. The conversation is an original fictional teaching case.

11 Conversation answers

Resolving a material patent-translation query

E Extended conversation

Pages 82-83

1. quantifier discrepancy. Turn 4. The quantifier discrepancy changes the stated numerical range, so it needs substantive review rather than a silent stylistic correction.

2. source wording. Turn 6. The source wording is the actual expression being translated and must remain available while the intended meaning and legal implications are reviewed.

3. translation query. Turn 10. A translation query identifies a specific discrepancy for authorized resolution without granting the translator authority to choose the legal scope.

4. version label. Turn 12. The version label should reflect the actual review status rather than imply final approval while material questions remain unresolved.

5. controlled revision. Turn 14. A controlled revision makes the authorized change traceable and preserves the relationship between the approved instruction and revised text.

6. terminology check. Turn 18. The terminology check verifies consistent use within its stated scope and complements, rather than replaces, the substantive quantifier review.

F Transfer exchange

Page 84

1. bound

Translator: "At least sets a lower bound."

At least three includes three and larger counts in the supplied numerical comparison.

2. limit

Reviewer: "At most sets an upper limit."

At most three includes three and smaller counts, changing the relationship.

3. query

Translator: "The difference needs an explicit query."

The translator should raise the discrepancy for authorized review rather than choose scope.

4. traceable

Reviewer: "Keep both original versions traceable."

Preserving the versions lets reviewers identify the discrepancy and the authorized resolution.

Find the move you need

Use these as precise language models. Replace details only when you know the actual facts, authority, and agreed conditions.

01 Interviewing inventors without leading their answers

Elicit the mechanism: What does the curved channel change in the flow path?

Separate result from explanation: The test reports a shorter time; it does not yet establish why.

Summarize evidence: We have a prototype, a reported result, and contribution details to verify.

Full phrase set: pages 7-8 | Dialogue: pages 10-11

02 Discussing prior art without overstating the search

Locate support: Which passage discloses the connector?

Check dates: Publication and priority information still need verification.

Report next steps: I will add pinpoint citations and document the remaining search gaps.

Full phrase set: pages 16-17 | Dialogue: pages 19-20

03 Explaining claim structure to a technical colleague

Explain inheritance: Claim 2 carries forward the requirements of claim 1.

Locate the first mention: We need to check where that element is introduced.

Keep alternatives distinct: A connector-only concept would need separate drafting and support review.

Full phrase set: pages 25-26 | Dialogue: pages 28-29

04 Checking drafting support before amending

Locate the basis: Where does the filed application disclose that controller?

Request precision: Please provide the exact paragraph or drawing reference.

Summarize the limit: The proposed addition remains under review; it is not approved for filing.

Full phrase set: pages 34-35 | Dialogue: pages 37-38

Keep the conversation productive

Use these as precise language models. Replace details only when you know the actual facts, authority, and agreed conditions.

05 Explaining an office action and agreeing on a response

Attribute the position: The examiner maps that passage to the channel limitation.

Discuss options: An amendment and an argument have different implications.

Summarize status: The response is proposed; it has not yet been approved or filed.

Full phrase set: pages 43-44 | Dialogue: pages 46-47

06 Coordinating international patent filing decisions

Correct the label: We have a PCT application, not a worldwide grant.

Separate interest from instruction: Evaluating a country is not an instruction to file there.

Close the loop: We need explicit instructions and confirmation of the action taken.

Full phrase set: pages 52-53 | Dialogue: pages 55-56

07 Explaining freedom to operate and design-around questions

Separate ownership from permission: Our own patent does not settle third-party rights.

Avoid a shortcut: A different appearance does not by itself establish a design-around.

Report accurately: Clearance is under review, not already confirmed.

Full phrase set: pages 61-62 | Dialogue: pages 64-65

08 Negotiating a patent-license term sheet

Clarify exclusivity: Exclusive for which field and territory?

Check onward rights: Sublicensing needs its own agreed provision.

Confirm status: These are proposed terms, not an executed license.

Full phrase set: pages 70-71 | Dialogue: pages 73-74

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

action owner confirm the action owner 6
action owner confirm the action owner 15
action owner confirm the action owner 24
action owner confirm the action owner 33
action owner confirm the action owner 42
action owner confirm the action owner 51
action owner confirm the action owner 60
action owner confirm the action owner 69
allowance distinguish allowance from issuance 41
alternative configuration disclose an alternative configuration 5
amendment prepare an amendment 32
antecedent basis check antecedent basis 23
apparatus claim distinguish an apparatus claim 23
appeal assess an appeal 42
application as filed compare the application as filed 32
argument on the record develop an argument on the record 41
audit right agree audit rights 69
baseline configuration identify the baseline configuration 6
blocking patent investigate a potential blocking patent 59
causal mechanism explain the causal mechanism 6
check-back complete a check-back 6
check-back complete a check-back 15
check-back complete a check-back 24
check-back complete a check-back 33

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

check-back complete a check-back 42
check-back complete a check-back 51
check-back complete a check-back 60
check-back complete a check-back 69
citation trail follow the citation trail 15
claim review the claim 23
claim amendment assess a claim amendment 41
claim body analyze the claim body 23
claim chart prepare a claim chart 59
claim construction address claim construction 24
claim dependency check claim dependency 23
claim limitation identify each claim limitation 23
claim scope assess claim scope 23
claim tree check the claim tree 24
clarification request make a targeted clarification request 6
clarification request make a targeted clarification request 15
clarification request make a targeted clarification request 24
clarification request make a targeted clarification request 33
clarification request make a targeted clarification request 42
clarification request make a targeted clarification request 51
clarification request make a targeted clarification request 60
clarification request make a targeted clarification request 69
clarity issue resolve a clarity issue 42
classification code search by classification code 14

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

clean copy compare the clean copy 33
clearance opinion obtain a clearance opinion 60
client instruction obtain client instructions 42
combination rationale assess the combination rationale 15
commercial clearance define commercial-clearance scope 59
comparative test conduct a comparative test 6
conception investigate contribution to conception 5
confidential disclosure control confidential disclosure 6
continuing application review continuing applications 60
contribution record preserve the contribution record 5
coolant channel trace the coolant channel 5
dependent claim review a dependent claim 23
design-around evaluate a design-around 59
designated Office verify designated Office requirements 50
detachable connector specify a detachable connector 5
disclosure passage cite the disclosure passage 14
distinguishing feature identify a distinguishing feature 42
docket entry verify the docket entry 41
doctrine of equivalents review the doctrine of equivalents 59
draft history preserve the draft history 33
embodiment describe an embodiment 5
enablement evaluate enablement 32
examiner interview request an examiner interview 41
examiner position summarize the examiner position 41

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

exclusive license define the exclusive license 68
execution confirm execution 69
expired patent verify an expired patent 60
explicit support identify explicit support 32
fallback position preserve a fallback position 24
feature mapping prepare feature mapping 14
field of use restrict the field of use 68
filed drawing inspect the filed drawing 32
filing instruction obtain filing instructions 51
filing strategy review the filing strategy 33
final rejection review a final rejection 41
freedom to operate commission a freedom-to-operate review 59
functional language evaluate functional language 24
further limitation introduce a further limitation 24
grant decision distinguish the grant decision 51
ground of rejection address each ground of rejection 41
improvement rights clarify improvement rights 69
independent claim draft an independent claim 23
inherent disclosure assess inherent disclosure 32
international application identify the international application 50
international phase complete international-phase tasks 50
international search report review the international search report 50
International Searching Authority identify the International Searching Authority 50
interview summary review the interview summary 41

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

invention disclosure submit an invention disclosure 5
inventive step assess inventive step 14
inventorship assess inventorship 5
jurisdiction budget approve the jurisdiction budget 51
keyword variant include keyword variants 14
laboratory notebook preserve the laboratory notebook 6
later-developed feature distinguish a later-developed feature 32
legal status verify legal status 59
license grant negotiate the license grant 68
licensed territory define the licensed territory 68
licensee identify the licensee 68
licensor identify the licensor 68
literal infringement assess literal infringement 59
local associate instruct the local associate 51
marked-up copy circulate a marked-up copy 33
method claim draft a method claim 23
milestone payment define a milestone payment 68
minimum royalty negotiate a minimum royalty 69
national phase plan national-phase entry 50
national requirements verify national requirements 50
net sales negotiate net sales 68
new matter identify potential new matter 32
non-final action respond to a non-final action 41
non-patent literature search non-patent literature 15

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

nonexclusive license distinguish a nonexclusive license 68
nonobviousness evaluate nonobviousness 14
novelty analyze novelty 14
office action review the office action 41
original disclosure locate original disclosure 32
Patent Cooperation Treaty use the Patent Cooperation Treaty route 50
patent family review the patent family 15
pending application monitor a pending application 60
portfolio review conduct a portfolio review 51
preamble review the preamble 23
prior art assess prior art 14
priority date check the priority date 14
priority entitlement assess priority entitlement 33
product configuration freeze the reviewed product configuration 59
prosecution history review the prosecution history 42
prototype evaluate the prototype 5
public disclosure review public disclosure 6
publication date verify the publication date 14
receiving Office identify the receiving Office 50
reduction to practice document reduction to practice 5
reference document retrieve the reference document 14
regional phase coordinate regional-phase entry 50
residual risk communicate residual risk 60
response deadline verify the response deadline 41

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

response strategy agree on a response strategy 42
review trigger define a review trigger 60
right to exclude explain the right to exclude 59
royalty base define the royalty base 68
scope boundary state the scope boundary 6
scope boundary state the scope boundary 15
scope boundary state the scope boundary 24
scope boundary state the scope boundary 33
scope boundary state the scope boundary 42
scope boundary state the scope boundary 51
scope boundary state the scope boundary 60
scope boundary state the scope boundary 69
search limitation disclose the search limitation 15
search scope define the search scope 14
single-reference analysis distinguish single-reference analysis 15
source attribution preserve source attribution 6
source attribution preserve source attribution 15
source attribution preserve source attribution 24
source attribution preserve source attribution 33
source attribution preserve source attribution 42
source attribution preserve source attribution 51
source attribution preserve source attribution 60
source attribution preserve source attribution 69
specification review the specification 32

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

structural limitation identify a structural limitation 24
sublicense negotiate sublicense rights 68
support citation provide a support citation 32
support matrix maintain a support matrix 33
technical effect substantiate a technical effect 5
technical problem define the technical problem 5
term sheet revise the term sheet 69
termination trigger define a termination trigger 69
territorial protection explain territorial protection 51
territory of interest identify the territory of interest 59
third-party patent review third-party patents 59
transitional phrase select the transitional phrase 23
translation specification confirm the translation specification 50
upfront payment agree an upfront payment 68
working assumption challenge a working assumption 6
working assumption challenge a working assumption 15
working assumption challenge a working assumption 24
working assumption challenge a working assumption 33
working assumption challenge a working assumption 42
working assumption challenge a working assumption 51
working assumption challenge a working assumption 60
working assumption challenge a working assumption 69
written description assess written description 32
written opinion review the written opinion 50

Original cases. Clear boundaries.

These are original fictional teaching conversations, not transcripts of real workers. Names, figures, organizations, and incidents are invented. Sources support terminology and communication aims, not the fictional results or an endorsement of this book.

[1] USPTO. MPEP 2109: Inventorship.

Open the original source

US terminology concerning contribution to conception of claimed subject matter; not a universal inventorship test. Checked 11 October 2026.

[2] USPTO. MPEP 301: Ownership and assignability.

Open the original source

Distinguishes patent ownership and exclusion rights from permission to commercialize. Checked 11 October 2026.

[3] WIPO. Introduction to the Patent Cooperation Treaty.

Open the original source

International filing, search, and national or regional examination terminology. Checked 11 October 2026.

[4] USPTO. Manual of Patent Examining Procedure.

Open the original source

Primary US examination terminology; sections 608, 706, 714, and 2163 inform the claim, response, and disclosure distinctions. Actual matters require current rules and qualified review. Checked 11 October 2026.

Phil Stilwell

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